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GBS PROCESS FLOW

Performance Management, Career and Succession Planning — Organisational Process Flow

Planning · monitoring · review · calibration · reward · talent and succession · early remediation · LRA ss.186(2)(a), 187, 188, 191, 192 · Code of Good Practice: Dismissal, 2025 (GN 3470, GG 53294) items 14–20 · EEA ss.5, 6(4), 11, 15, 20 · Skills Development Act and SETA Grant Regulations · BCEA · POPIA ss.11, 23, 26, 71 · As at 19 October 2026

PREPARED FOR
[Client / Team]

PREPARED BY
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Working document for legal review — not legal advice.

LAW = in force; Code = code of good practice; CL = case law; BP = best practice.

01 / PERFORMANCE MANAGEMENT PROCESS

Purpose, status and reading notes

This flow tells an organisation what to do, by when, and who hands off to whom, from the moment the strategic plan is approved until the year's ratings have been calibrated, rewarded and turned into development, talent and succession decisions, and the results feed back into the next cycle. It covers the full domain that the GBS Process Architecture assigns to *Performance Management, Career and Succession Planning*: job profiles, gap analysis, KPA and KPI design and weighting, the gap to the next position, and the 9-box. It is built from the *End-to-End Performance Management Process* supplied for this flow (1 October 2026), corrected and supplemented as recorded in section 15.

Every employee moves through one annual spine (plan, contract, monitor, assess, reward and develop, govern) with continuous check-ins underneath. The same evidence then drives one of two paths:

- **Grow** — the default for everyone meeting or exceeding standard: recognition, reward, development, talent pools, succession slates and career moves (Phase 5).
- **Remediate** — for a sustained gap against a known standard: early warning, a diagnostic screen, informal counselling and, where the cause is capacity, a hand-off to the GBS Incapacity flow (Track 2A) for the performance improvement plan (PIP). Wilful underperformance goes to the GBS Misconduct flow; a health or disability cause goes to Incapacity Track 2B; a systemic cause is fixed by management, not the employee.

The flow applies to permanent and fixed-term employees, including managers and executives. Probationers follow the same planning and check-in steps with the probation rules in step 2.7. Workers placed by a temporary employment service (TES) are employed by the TES, which runs any formal process while the client supplies performance input under the TES agreement, unless they earn below the BCEA earnings



threshold and have been placed for more than 3 months other than as a temporary service: the client is then their sole employer and they enter this flow directly (LRA s.198A(3)(b); step 0.15). The flow assumes no collective agreement or bargaining council agreement regulates performance management, merit pay or bonuses; where one does, it prevails and this flow must be adjusted.

Legal status. No statute prescribes how an employer must manage performance. Setting standards, measuring work and rewarding results are part of the employer's right to direct and control work, exercised within the contract of employment and four bodies of law. (1) The LRA: a dismissal for poor work performance must be for a fair reason and follow a fair procedure (ss.188, 192), and unfair conduct relating to promotion, demotion, probation, training or the provision of benefits is an unfair labour practice (s.186(2)(a)). (2) The Code of Good Practice: Dismissal, 2025 ("the Code"), issued under s.203 and in effect from 4 September 2025, which repealed the Schedule 8 Code of Good Practice: Dismissal. Items 14 to 18 govern probation and items 19 and 20 govern poor work performance after probation; anyone deciding the fairness of a dismissal must take the Code into account (s.188(2), s.203(3)). (3) The EEA: every employer must eliminate unfair discrimination in any employment policy or practice, which includes performance evaluation and remuneration (ss.1, 5, 6(1)); a difference in terms and conditions between employees doing the same or substantially the same work, or work of equal value, that is directly or indirectly based on a listed ground is unfair discrimination (s.6(4)); where a listed ground is alleged the employer must prove the difference is fair (s.11(1)), while for an arbitrary ground the complainant carries that burden (s.11(2)). (4) POPIA: performance records are personal information, and some of what check-ins surface (health, disability) is special personal information. The Skills Development Act and the SETA Grant Regulations add an annual reporting duty that the development plans in this flow feed (Workplace Skills Plan and Annual Training Report, due 30 April each year). A review on 19 October 2026 found no amendment to the Code since publication. The Labour Law Amendment Bill, 2025 (published for comment on 26 February 2026) is DRAFT only and not law; it is tracked at step 6.7. Status should be re-checked before adoption.

Figures in force today. BCEA earnings threshold: R269,600.90 a year from 1 May 2026; it decides who may take an EEA s.10 dispute to CCMA arbitration and who is protected by LRA ss.198A–198B (relevant to TES workers' bonus eligibility). WSP/ATR deadline: 30 April each year (2027 cycle: 30 April 2027); late submission forfeits the mandatory grant of 20% of skills development levies paid (SETA Grant Regulations reg 4(4)), unless the SETA has granted an extension of up to one month on written request (reg 4(8)).

Labels used throughout.

- **LAW** = a statute or regulation in force (LRA, BCEA, EEA and Regulations, POPIA, PAIA, Skills Development Act and Levies Act, SETA Grant Regulations, Income Tax Act); binding now.
- **Code** = a code of good practice: the Code of Good Practice: Dismissal, 2025 (cited by item number), the Code of Good Practice on Equal Pay / Remuneration for Work of Equal Value (GN 448, 2015), the Code on the Employment of Persons with Disabilities (GN 1085, GG

39383, 2015) and the Code of Good Practice on the Prevention and Elimination of Harassment in the Workplace (GN R.1890, GG 46056, 2022). Must be taken into account; departures must be justified.

- **CL** = a principle from case law, cited by name, court and year. Verify the citation and any later authority before using it in advice.
- **BP** = best practice or internal control; not a statutory deadline. Adopt as policy so it becomes binding internally. All weights, scales, frequencies and periods marked BP are recommendations to be calibrated to each client.

Design principle. The performance record is the incapacity record. If an employee is ever dismissed for poor work performance, the employer will have to show that the employee failed to meet a standard; that the employee knew or could reasonably be expected to know it; was given a fair opportunity to meet it; that it was reasonably achievable; and that dismissal was appropriate (item 20(1)). It will also have to show appropriate evaluation, instruction, training, guidance or counselling and a reasonable period to improve (item 19(1)), and that the employee was given an opportunity to respond (item 19(2)). This flow is built so that every one of those facts is proved by a document made at the time in the ordinary course of the cycle — the signed agreement (known standard), the calibration record (reasonable and consistent standard), the check-in notes and PDP (evaluation, guidance and support), the mid-year gap confirmation (fair warning) — long before anyone opens an incapacity file. The same records defend reward and promotion decisions against unfair labour practice and equal-pay claims, because a pay difference based on performance is defensible only if the evaluation system is applied equally to everyone it covers.

Ten interpretation points that shape the flow.

- **Prerogative, but not unilateral change.** The employer may set reasonable standards without the employee's agreement (step 2.4). But introducing a performance system that changes how pay, increases or bonuses are earned may change terms and conditions of employment: consult, and where contractual entitlements change, agree or follow a lawful process (LRA s.64(4); step 0.2). Where a workplace forum exists, criteria for merit increases or discretionary bonuses are a matter for consultation (LRA s.84(1)(h); education and training are also a consultation matter under s.84(1)(i)).
- **Can't or won't, then which flow.** Poor performance because the employee cannot do the work is incapacity (items 19–20). Poor performance because the employee will not do it is misconduct. A health or disability cause is ill-health incapacity (item 21) and engages the EEA. A cause in the system (unclear standard, missing tools, impossible workload) is not the employee's problem at all. The diagnostic router (step R2) chooses one route and records why; if facts change, switch routes openly. Poor performance is never dealt with under the disciplinary code, and PIP records are not disciplinary records.
- **A rating is not, by itself, a dispute the CCMA can hear.** Section 186(2)(a) covers promotion, demotion, probation, training and benefits, not ratings as such. A rating becomes justiciable when it decides a benefit (a merit increase or bonus), a promotion, training or a demotion, or when it is alleged to be discriminatory (EEA s.6). That is why the internal objection route (section 10) must be real: it is the only forum for most rating disagreements. Whether a discretionary bonus is a "benefit" depends on the scheme; the Labour Appeal Court has held that a



benefit includes an advantage granted under a policy or practice subject to the employer's discretion (CL: *Apollo Tyres SA v CCMA*, DA1/11, LAC, 21 February 2013).

- **Equal application.** Performance is a recognised ground for paying people differently for equal work, but only where the evaluation system is applied equally (EE Regulations, 2025 (GN 6125) reg 7(1)(c) and 7(2): employees must be equally subject to a consistently applied evaluation system, and the difference must not be biased against a listed group and must be applied proportionately; Code on Equal Pay, GN 448, 2015). Calibration (Phase 4), the equal-pay check (step 5.3) and the adverse-impact review (step 6.2) exist to prove it.
- **A changed standard is a new standard.** It must be communicated, dated and given a reasonable lead-in before it is assessed (item 20(1)(b)(i)–(ii)). Mid-cycle resets (step 3.6) are recorded as dated amendments.
- **Statutory leave is neutral.** An employee may not be rated down, or lose a bonus pro rata beyond the scheme's stated rules, because of maternity, parental, adoption, commissioning-parental, sick or COIDA leave. Rate the period actually worked (step 4.9). Penalising pregnancy-related absence risks an automatically unfair dismissal or discrimination claim (LRA s.187(1)(e); BCEA ss.25–25C; EEA s.6(1)). Since *Van Wyk v Minister of Employment and Labour* (CC, 3 October 2025), BCEA ss.25–25C are read so that two employed parents may share 4 months and 10 days of parental leave; rate neutrally whichever parent takes it.
- **Disability and accommodation.** Where a gap is linked to a disability, the question becomes reasonable accommodation, not a PIP (EEA s.1, definition of reasonable accommodation, and s.6; Disability Code, GN 1085, GG 39383, 2015). Targets for an accommodated employee may be adjusted; the adjustment is recorded, not hidden.
- **Senior employees and probationers.** For managers and senior or highly skilled employees, a formal PIP and a warning may not be required where they can judge their own performance or a lapse would have severe consequences (item 20(2)); they must still be told and allowed to respond (item 19(2)). Stating that expectation in the agreement (step 2.8) makes it easier to rely on later. Probation now tests suitability as well as performance, and the employee must be heard before probation is extended or the appointment not confirmed (items 14–18).
- **A human decides.** No rating, reward, PIP or talent placement may be based solely on automated processing that profiles the employee (POPIA s.71). AI summaries and analytics may support managers, but a named person decides and can explain why. This goes beyond the s.71 minimum (s.71(2)–(3) permit exceptions with safeguards, such as a chance to make representations and information about the underlying logic) and is adopted as BP; each tool is governed under the GBS POPIA and AI Compliance flows.
- **Counting time.** Internal steps use working days (BP). Statutory referral periods are calendar days: exclude the first day and include the last; if the last day is a Saturday, Sunday or public holiday, it moves to the next working day (CCMA Rules, rule 3; Interpretation Act 33 of 1957 s.4 for other periods). The cycle is expressed in months relative to the financial year: Month 0 is the month before the year starts; Month 12 is its last month.

Roles used. HR Business Partner (HRBP, the process owner and spine; in smaller organisations the HR manager); Line Manager (LM); Next-level Manager (NLM); Employee (EMP); Executive Committee (EXCO); Board and Remuneration Committee (REMCO); Calibration Panel (CAL, divisional head, peer managers and an HR facilitator); Talent Committee (TC); Learning and Development (L&D); Skills Development Facilitator (SDF) and Training Committee (TCOM); Employment Equity Manager (EEM, the senior manager assigned under EEA s.24); Employee Relations Officer (ERO, case owner in the Incapacity and Misconduct flows); Payroll (PAY); Information Officer (IO); HRIS owner (IT); Legal Adviser (LA). The employee's representative (REP: a co-employee or trade union representative); stakeholder and 360-degree raters (RAT); coach or mentor (MEN). External: SETA; TES provider (TES); Employee Assistance Programme (EAP); trade union or workplace forum (TU); CCMA or bargaining council (CCMA/BC); Labour Court (LC); Information Regulator (IR).

Master flow at a glance

Phase 0 is in place before the cycle starts. Phases 1 and 2 plan and contract at the start of the year; Phase 3 runs all year, with formal reviews each quarter; Phase 4 assesses and calibrates at year-end; Phase 5 turns calibrated results into reward, development, talent and succession decisions; and Phase 6 governs the system and feeds the next cycle. The remediation branch can open from any check-in or review. The parallel disputes track is not a phase: it opens when the agreement is signed and runs until the last referral window closes.

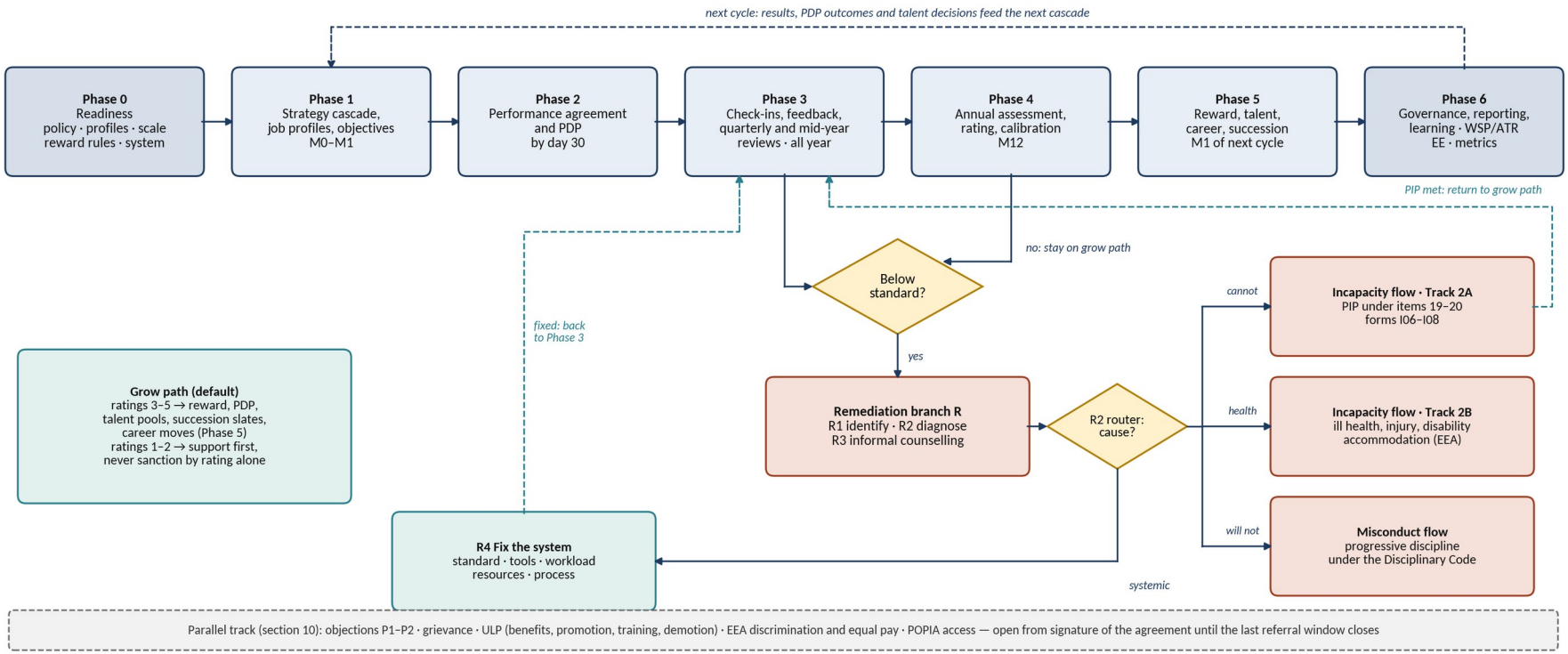


Figure 1 — Master flow: the annual spine, the remediation branch and the diagnostic router

The two paths compared

Stage	Grow path (ratings 3–5)	Development focus (rating 2, or an early gap)	Remediate (sustained gap; rating 1 trend)
Trigger	Key results on track in check-ins	A key result or competency behind plan in one check-in or review	Concern raised in two consecutive check-ins without improvement (step 3.5), or mid-year trend below Meets
Check-ins (3.1)	Fortnightly; stretch and recognition	Fortnightly; specific support added to the PDP	Weekly (BP) once R3 opens; notes shared with the employee
Mid-year (3.7)	Readiness signals noted for talent review	Gap and support confirmed in the review form	Written gap confirmation (PM25): the standard, the gap, the support offered
Diagnosis (R2)	—	Manager explores obstacles in the check-in	Router record (PM27): cannot, will not, health or systemic
Formal process	None	None	Capacity cause: Incapacity Track 2A (PIP, items 19–20). Will not: Misconduct flow. Health: Incapacity Track 2B
Year-end rating (4.x)	Calibrated 3, 4 or 5	Calibrated 2; never a surprise	Calibrated 1 or 2 reflecting the PIP evidence; PIP continues regardless of the cycle
Reward (5.1–5.6)	Merit matrix and incentive bands	Reduced or withheld only as the scheme rules say, communicated in advance	As the scheme rules say; the rating triggers support, not sanction
Talent (5.7–5.11)	Talent pools, succession slates, stretch roles	Targeted development in role	Role review only after the Incapacity flow has run
Key risk	Leniency and halo inflating ratings; unexplained pay gaps	Support promised but not delivered	Standard never communicated; first notice at year-end; PIP as a formality

The review and rating sequence (Phases 3 and 4)

Figure 2 shows the order of every formal review. Quarterly reviews reset key results; the mid-year review is also the formal checkpoint for anyone trending below Meets. At year-end the calibration panel can change a rating only with recorded reasons, and the manager — not the panel — holds the conversation. An objection does not hold up consolidation for everyone else; the affected rating is updated if the objection succeeds.

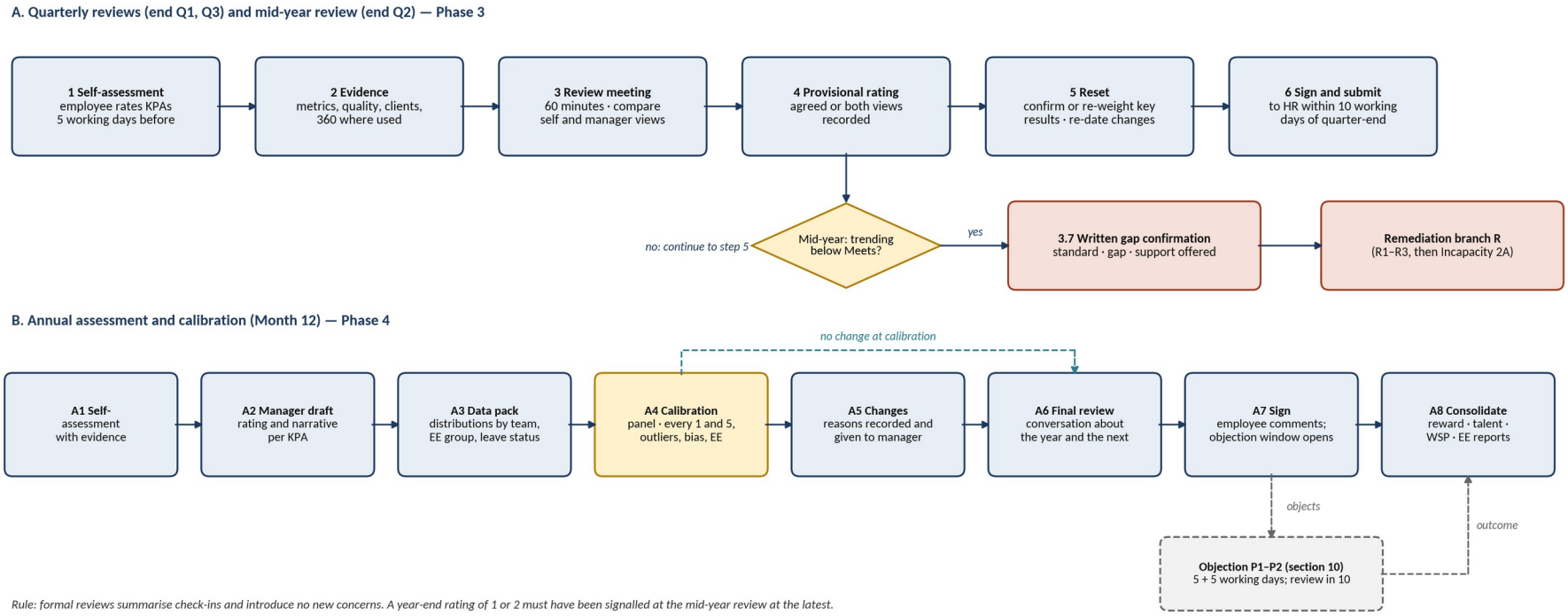


Figure 2 — Review and rating sequence: quarterly and mid-year reviews, then annual assessment and calibration

Integrated swimlane view

Read each phase column top to bottom to see who acts and who hands off; read each lane left to right to see one party's whole job. The HRBP lane is the spine: every other lane connects to it. The red lane shows where the flow hands over to the Incapacity and Misconduct flows, and the disputes track runs underneath from the day the agreement is signed.

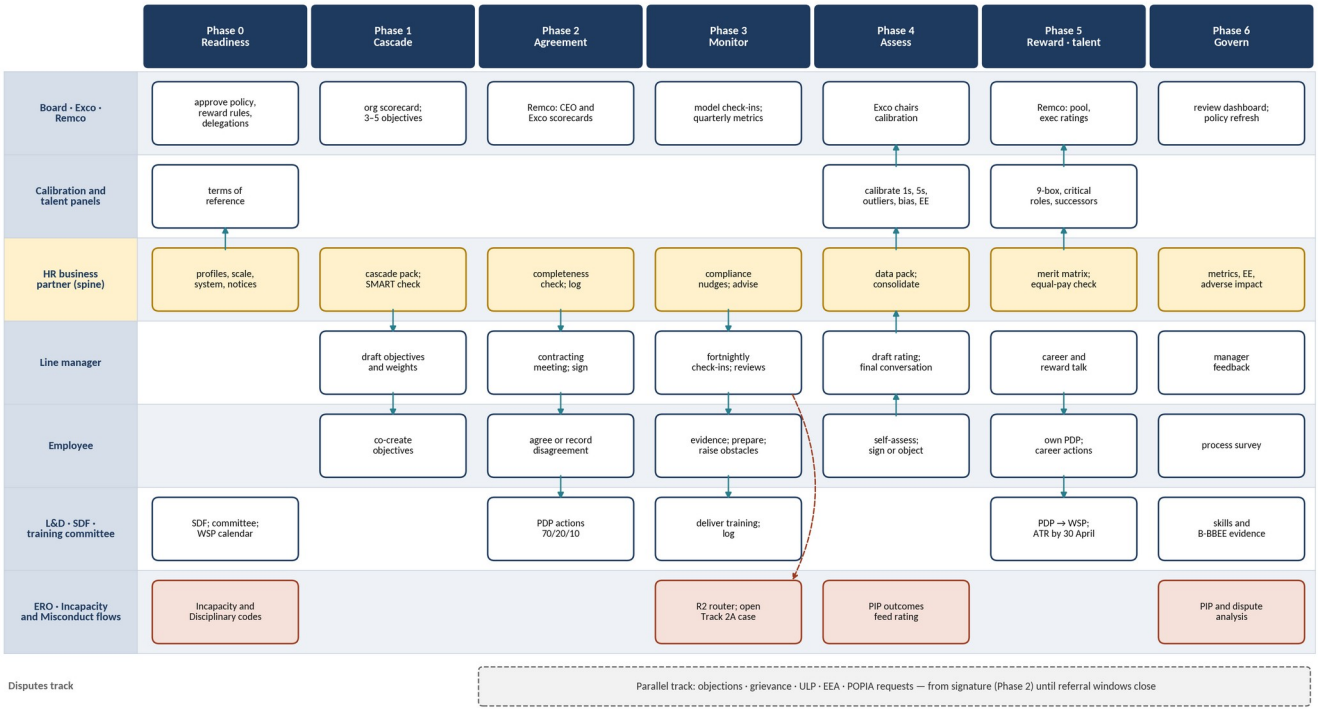


Figure 3 — Integrated swimlane: roles by phase, with the hand-off to the Incapacity flow

Phase 0 — Readiness (standing obligations)

Phase 0 has no case trigger. It must be in place before the first agreement is signed, because whether a standard was known and reasonable, whether a pay difference is justified, and whether performance data may lawfully be processed are all decided by documents that must already exist.

Step	Organisational action	Owner	Deadline	Form / output	Authority
0.1 Adopt the policy	Board-approved Performance Management Policy covering: principles; scope (including executives, fixed-term employees, probationers and TES workers); the policy hierarchy (policy → this process → Incapacity flow and PIP forms → Remuneration, Talent and Succession, Disciplinary and Ill-health policies); the scorecard structure and rating scale; calibration; the objection route; the remediation hand-off; treatment of statutory leave; records. Reconcile with collective agreements, which prevail.	EXCO, HRBP, LA	Now; annual review	PM01	LRA s.23; EEA s.5; BP
0.2 Consult before introducing or changing the system	Where the system is new, or a change affects how increases or bonuses are earned, consult recognised unions and staff before implementation; record the consultation and any agreement. Where a contractual entitlement changes, obtain agreement or follow a lawful process. Consult the workplace forum (if any) on merit-increase and bonus criteria.	HRBP, LA, TU	Before launch; on each change	PM02	LRA ss.64(4), 84(1)(h)–(i); BP
0.3 Delegations	Who approves organisational and executive scorecards, divisional calibration outcomes, rating changes after objection, merit and incentive outcomes, talent placements, and a referral to the Incapacity flow. Executive ratings and the reward pool go to Remco.	REMCO, EXCO	Now	PM03	King V (2025; remuneration governance; financial years from 1 January 2026); BP



Step	Organisational action	Owner	Deadline	Form / output	Authority
0.4 Job profiles and competency framework	Current job profile for every role: purpose, KPAs, inherent requirements, reporting lines and the competencies with level descriptors (BP: five proficiency levels). Keep a profile for the next role in each career path so the gap to the next position can be measured (step 5.9). Shared with the Resourcing flow (its step 0.5).	HRBP, LM	Now; on every role change	PM04; PM05	Code item 20(1)(b)(i); EEA s.20(3); BP
0.5 Rating scale and scoring rules	Five-point scale with behavioural descriptors, weighted scoring rule and band table (section 9); weighting defaults by level; rules for part-year, transfer and acting periods. Publish before the cycle starts.	HRBP	Now	PM06	Code item 20(1)(b)(i); BP
0.6 Reward rules	Remuneration policy, merit matrix and incentive or bonus scheme rules: eligibility, gates, multipliers by band, pro-rating (and what is not pro-rated, such as statutory leave), treatment of leavers and PIP status, Remco discretion, and clawback rules. Communicated in writing before the performance period starts, because a bonus withheld under rules the employee never saw is hard to defend.	HRBP, REMCO, LA	Before the cycle	PM07	EEA s.6(4); LRA s.186(2)(a); BCEA s.34 (deductions); CL: *Apollo Tyres* (DA1/11, LAC, 21 February 2013)
0.7 Equal application and EE review of the design	Test the scorecard, scale and reward rules for disparate impact before launch: are targets comparable across similar roles; do part-time, remote or accommodated employees have a fair path to Meets; does the bonus rule penalise leave taken mostly by women. Align with the EE plan's barrier analysis.	EEM, HRBP	Before launch; annually	PM40	EEA ss.5, 6(1), 6(4), 15; EE Regulations, 2025 (GN 6125) reg 7(1)(c), 7(2); Code on Equal Pay (GN 448, 2015)

Step	Organisational action	Owner	Deadline	Form / output	Authority
0.8 HRIS, app and AI governance	System supports the cascaded OKR matrix, check-in notes, feedback and recognition, 360 requests, calibration views and dashboards. For every AI or analytics feature: no sole automated rating, ranking or PIP decision; human reviewer named; disclosed in the privacy notice; vendor operator agreement; check where data is hosted. Pulse or wellbeing check-ins are anonymous, aggregated (BP: minimum group of 10) and never a rating input. The no-sole-automated-decision rule goes beyond the s.71 minimum (s.71(2)–(3) permit exceptions with safeguards) and is adopted as BP; govern each tool under the GBS POPIA and AI Compliance flows.	IT, IO, HRBP	Before use; annual audit	PM09	POPIA ss.19–21, 71, 72; BP; GBS POPIA and AI Compliance flows
0.9 Privacy notice and retention	Employee notice: what performance data is collected, why, who sees it, how long it is kept, and how to access and correct it. Restrict health or disability information disclosed in a check-in to HR and the treating process (POPIA ss.26, 32). Retention (BP): agreements, reviews and ratings for the life of employment plus 3 years; PIP and incapacity files until any dispute is finally determined; remuneration records at least 3 years (BCEA s.31). Only persons bound by a duty of confidentiality (POPIA s.32(2)) handle health information; apply the security and disposal requirements of the Health Information Regulations, 2026 (GN 7198, GG 54268).	IO, HRBP	Now	PM08	POPIA ss.11, 14, 18, 23, 26, 32(1)(f), 32(2); Health Information Regulations, 2026; BCEA s.31; Prescription Act s.11
0.10 Skills development infrastructure	Register with the correct SETA; appoint an SDF; constitute a training committee where required (BP: 50 or more employees); set the internal WSP/ATR calendar so that PDP data is extracted by end-February for the 30 April submission. Map PDP learning to OFO occupations.	L&D, SDF	Now; annual	PM38	Skills Development Act; SETA Grant Regulations (GN R.990, GG 35940, 2012) reg 4(1), (3)
0.11 Panels' terms of reference	Calibration panel and talent committee: membership, quorum, HR facilitation, conflicts of interest (a manager does not calibrate a relative or a direct report's objection), confidentiality, record of reasons, escalation to Exco.	HRBP, EXCO	Now	PM10	EEA s.6(1); BP

Step	Organisational action	Owner	Deadline	Form / output	Authority
0.12 Capacitate leaders	Train managers on goal-setting and weighting, SBI feedback, the GROW coaching model, smart trust, difficult conversations, rating biases, calibration, items 19–20 and 14–18, statutory leave rules and POPIA. Managers are measured on the people-leadership KPA.	HRBP, L&D	Before the first cycle; annually	Attendance records	BP
0.13 Publish the annual calendar	Dates for the cascade, agreement deadline, quarterly and mid-year reviews, calibration, final conversations, reward, talent review, WSP/ATR extract and EE reporting (section 14).	HRBP	Month 0	PM11	BP
0.14 Small-employer version	Employers with fewer than 50 employees may run a shortened flow: one-page scorecard; monthly one-on-ones; mid-year and annual review only; calibration by the owner with one peer; written gap confirmation and the Incapacity flow for remediation. Items 19–20, the EEA and POPIA still apply in full.	HRBP	Now	Simplified PM15	Code item 3; BP
0.15 TES workers and contractors	For placed workers earning above the BCEA earnings threshold (R269 600.90 a year from 1 May 2026), placed for 3 months or less, or performing a genuine temporary service, the TES is the employer and runs any formal process; the client gives structured performance input under the TES agreement. A worker below the threshold placed for more than 3 months otherwise is deemed the client's employee (s.198A(3)(b); *Assign Services v NUMSA*, CC 2018): the client is the sole employer, runs this flow (including any PIP or probation process) itself, and must treat the worker on the whole not less favourably than comparable employees, including for performance pay, unless justified (s.198A(5)). Independent contractors are managed by contract deliverables, not this flow.	HRBP, LA, TES	Now; on renewal	TES agreement schedule	LRA ss.198, 198A(3)(b), (5); CL: *Assign Services v NUMSA* [2018] ZACC 22

Employee side of Phase 0. Employees owe nothing yet, but their later rights depend on this phase. An employee rated against a profile that was never shared, or denied a bonus under rules never communicated, has a strong objection and possibly an unfair labour practice claim.

Watch. A policy that says ratings are "calibrated to a curve" invites the argument that ratings were lowered to fit a quota rather than measured against the agreed standard. Use the distribution as a diagnostic lens only (step 4.4).



Phase 1 — Strategy cascade, job profiles and objective-setting

When: Month 0 to Month 1 of the cycle, aligned to the financial year. **Output:** organisational, divisional, team and individual objectives, each traceable upward, with job profiles confirmed and gaps identified.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.1 Organisational scorecard	Strategic plan approved.	Exco translates the plan into 3–5 organisational objectives with measurable key results and baselines, plus non-negotiable compliance obligations (for example SHEQ, FAIS/FICA, B-BBEE, EE plan numerical goals, POPIA). Board approves.	EXCO, BOARD	Month 0	PM12	Governance; BP
1.2 Divisional and team cascade	Scorecard approved.	Leaders hold a cascade session; teams define the objectives through which they contribute (leaders set direction, teams decide how). Populate the OKR matrix: objective, key result area, indicators, stakeholders, feedback, iteration actions, development needs.	EXCO, LM	Month 0–1	PM13	BP
1.3 Confirm job profile and gap	Before drafting objectives.	Confirm the job profile is current; if the role changed, update it before objectives are set. Run a gap analysis: current competency level against the profile (feeds the PDP) and, where the employee is on a career path, against the next role's profile (feeds step 5.9).	LM, HRBP	Month 1	PM04; PM14	Code item 20(1)(b)(i); BP
1.4 Draft individual objectives	Team set agreed.	Manager and employee jointly draft: 4–6 KPAs or objectives, each with 1–3 key results or KPIs, a baseline, a target and an evidence source; 3–5 behavioural competencies with level descriptors; for managers, a people-leadership KPA. 1–3 development goals go into the PDP and are not rated.	LM, EMP	Month 1	PM15	BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.5 Weight the scorecard	Draft complete.	Default results 70% / behaviours 30%; 80/20 for operational roles, 60/40 for senior leaders (BP). Within results, weights total 100%; no KPA below 10% or above 35% (BP), so that no single measure decides the year. Compliance obligations may be set as gates rather than weighted KPAs.	LM, HRBP	Month 1	PM15	BP
1.6 Quality and fairness check	Weighted draft.	Test each objective: SMART with a stated evidence source; within the employee's control and competence; resourced; a mix of lagging results and leading indicators; broken into quarterly key results. Compare targets for employees in the same role: unexplained differences are a fairness and equal-pay risk.	HRBP	Before signature	PM16	Code item 20(1)(b)(iii); EEA s.6(4)
1.7 Changed-standard rule	A standard is new or raised mid-year.	Communicate in writing, date it, explain it, consult where it affects pay, and give a reasonable lead-in before it is assessed (BP: at least 30 days or the next full quarter). Record as a dated amendment.	LM, HRBP	On change	PM17	Code item 20(1)(b)(i)–(ii)
1.8 Accommodation check	Employee with a known disability or other accommodation.	Agree how targets or methods are adjusted (tools, hours, duties) and record the adjustment and its review date. Do not lower the rating scale for the person; adjust the target or the means.	LM, HRBP, EEM	Before signature	PM15 accommodation note	EEA s.6; Disability Code (GN 1085, GG 39383, 2015)
1.9 Part-year and special cases	New starter, transfer, return from long leave, acting appointment.	Pro-rate or re-base targets for the period available; set probation objectives for new starters (step 2.7); record acting-role objectives separately.	LM, HRBP	Within 30 days of the event	PM15; PM32	BP; BCEA ss.25–25C
1.10 Publish team objectives	Objectives signed.	Make team objectives and key results visible across the team. Individual ratings, PIPs and development needs are not published.	LM	Month 1	PM13	POPIA ss.11, 19; BP



Structure of an individual scorecard

Component	Content	Default weight (BP)	Evidence
Results (the "what")	4–6 KPAs or objectives, each with 1–3 key results or KPIs, a baseline and a target; quarterly key results that can be re-prioritised	70%	System data, output reports, quality audits, client feedback
Behaviours (the "how")	3–5 values-based competencies (for example collaboration, client focus, adaptability, accountability); people leadership for managers, measured partly by team engagement and check-in completion	30%	Observed examples (SBI), 360 summaries, stakeholder input
Compliance gates	Non-negotiable obligations (SHEQ, regulatory, POPIA); a breach caps the results score rather than being weighted	Gate	Compliance reports
Development	1–3 growth goals; recorded in the PDP, not rated	—	PDP actions completed

Watch. An objective outside the employee's control ("increase divisional revenue 20%" for a junior analyst) cannot found a fair incapacity case, because the standard was not reasonably achievable by that employee.

Phase 2 — Performance agreement and personal development plan

When: signed within 30 days of the cycle start, an appointment or a role change. **Output:** signed performance agreement and PDP on the HR file. The agreement is the evidential anchor for everything that follows: it proves that the employee knew the standard and that it was set as reasonable.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2.1 Draft and pre-read	Objectives drafted.	Manager shares the draft scorecard; employee reviews and proposes changes.	LM, EMP	5 working days before 2.2 (BP)	PM15	BP
2.2 Contracting meeting	Pre-read done.	60–90 minutes: agree objectives, key results, targets, weightings, evidence sources and the check-in rhythm; discuss resources, obstacles, accommodations and support.	LM, EMP	By day 25	PM15	Code item 19(1)(a)
2.3 Personal development plan	In the same meeting.	Development goals and actions (on-the-job 70%, coaching and mentoring 20%, formal learning 10%), owner, date and cost. Flag formal learning for the WSP. Link to the gap analysis (step 1.3).	LM, EMP, L&D	By day 30	PM18	Skills Development Act (WSP); BP
2.4 Sign or record disagreement	Agreement settled.	Both sign. If the employee does not agree, the manager records the reasons; the employee may refer the disagreement to the next-level manager within 5 working days. The NLM decides within 5 working days. Unresolved objectives may still be set by the employer if they are reasonable and attainable. Refusing to sign is not misconduct; refusing to perform a reasonable instruction may be (Misconduct flow).	LM, EMP, NLM	Day 30; referral +5 +5 working days	PM15; PM19	Code item 20(1)(b)(i), (iii); BP
2.5 HR completeness check	Signed or recorded.	Check all agreement contents are present (below); log the date; issue the standards acknowledgement.	HRBP	Within 5 working days of signature	PM17	BP



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2.6 Amendments	Any mid-cycle change.	Record as a dated, signed amendment; re-weight if needed; apply the changed-standard rule (step 1.7).	LM, HRBP	On change	PM17	Code item 20(1)(b)(i)
2.7 Probationers	New appointment on probation.	Probation agreement: probation objectives (performance and suitability), weekly check-ins for the first month then fortnightly (BP), monthly probation reviews (at least day 30, 60 and 90: Resourcing step 5.10, form RS40), and the end date. Give reasonable guidance, instruction, training or counselling. Before probation is extended or the appointment not confirmed, invite representations and consider them; route to Incapacity step 2A.10. For Model 3 (structured development) and succession appointees, the RS40 development plan forms part of the probation objectives and the support delivered is logged.	LM, HRBP	At start	PM20 (= Incapacity I09; Resourcing RS40)	Code items 14–18; Resourcing steps 5A.2, 5.10
2.8 Senior employees and executives	Manager, executive or highly skilled professional.	State in the agreement that the employee is expected to judge the adequacy of their own performance and to raise risks early, and record any role where a lapse would have severe consequences. Remco approves the CEO's and Exco scorecards.	LM, REMCO, HRBP	At signature	PM15	Code items 19(2), 20(2)
2.9 TES workers	Placement on a role covered by the flow.	Client agrees the objectives with the TES and the worker; the TES records them; check-ins proceed as normal; formal steps go through the TES where the TES is the employer. For a worker deemed the client's employee (below the BCEA threshold, placed for more than 3 months, not a temporary service), the client runs this flow, including any PIP or probation process, itself (step 0.15).	LM, TES	Within 30 days of placement	TES schedule	LRA ss.198, 198A(3)(b), (5); CL: *Assign Services* (CC 2018)



Agreement contents. Job purpose; KPAs, key results, targets, weights and evidence sources; behavioural competencies with level descriptors; compliance gates; check-in schedule; review dates; rating scale and band table; accommodation note (if any); the reward rules that apply (by reference to PM07); PDP; signatures and date.

Employee side of Phase 2. Co-create objectives; say now if a target is out of reach, under-resourced or affected by health or personal circumstances; keep a copy; own the PDP.

Watch. An agreement signed on day 120 leaves only two quarters of evidence and weakens any later claim that the standard was known in time. Track the 30-day metric (step 6.1).

Phase 3 — Check-ins, feedback, coaching and formal reviews

When: throughout the cycle; formal reviews at the end of Q1 and Q3 (quarterly) and Q2 (mid-year). **Output:** check-in notes, feedback log, updated key results and PDP, signed review forms with provisional ratings. This is the engine of agile performance management: structured dialogue, not micro-management. Formal reviews summarise what was already discussed and introduce no new concerns.

Touchpoints

Touchpoint	Frequency (BP)	Purpose	Record
Team huddle	Daily or weekly	Priorities, blockers, quick wins	None required
One-on-one check-in ("agile hook-up")	At least fortnightly; weekly for new starters, probationers and anyone in branch R	Progress on key results, obstacles, feedback both ways, wellbeing, development	3–5 bullet note in the system, visible to the employee (PM21)
Monthly deep-dive	Monthly	Review the OKR matrix, re-prioritise, update the PDP	Updated OKR matrix (PM13)
Real-time feedback and recognition	As it happens	Reinforce or redirect specific behaviour	Feedback or recognition entry (PM22)
Stakeholder / 360 input	Quarterly or at project end	Views of peers, internal clients and direct reports	Feedback summary (PM23)
Quarterly review	End Q1 and Q3	Provisional rating; reset key results	Review form (PM24)
Mid-year review	End Q2	Provisional rating; formal checkpoint for anyone trending below Meets	Review form (PM24); gap confirmation (PM25)



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.1 Check-ins	Agreement signed.	Hold one-on-ones at the agreed rhythm using the agenda below; record 3–5 bullets including agreed actions and owners; share the note. Missed check-ins are rescheduled, not skipped.	LM, EMP	Fortnightly	PM21	Code item 19(1)(a); BP
3.2 Real-time feedback	Observed behaviour.	Use Situation–Behaviour–Impact; name strengths as specifically as gaps; agree what continues or changes. Recognition may be public; corrective feedback is private.	LM, peers	As it happens	PM22	BP
3.3 Monthly deep-dive	Month end.	Review the key-results matrix; re-prioritise where the business pivots; update the PDP; log support delivered.	LM, EMP	Monthly	PM13; PM18	BP
3.4 Stakeholder and 360 input	Quarter end or project end.	Request structured input from at least 3 raters (BP) to preserve anonymity; developmental by default. If 360 data will inform the rating, say so in the agreement and give the employee the themes, not the raters' identities.	LM, HRBP, RAT	Quarterly	PM23	POPIA s.18; BP
3.5 Early warning	Concern raised in two consecutive check-ins without improvement.	Open remediation branch R (below). Nothing should first appear at a formal review.	LM	At the second check-in	PM26	Code item 19(1)
3.6 Quarterly review	End of Q1 and Q3.	Self-assessment with evidence 5 working days before; manager gathers metrics, quality checks and stakeholder feedback; 60-minute meeting; agree provisional ratings or record both views; reset (confirm, re-weight or replace) next quarter's key results and re-date any changed standard; update the PDP; note readiness signals for the talent review.	LM, EMP	Sign and submit within 10 working days of quarter-end	PM24	BP



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.7 Mid-year review	End of Q2.	As 3.6. For anyone trending below Meets, confirm in writing: the standard, the gap with examples, the support offered and the date of the next review, and invite the employee's written response. This is not a warning of dismissal; it ensures a below-standard year-end rating is never a surprise.	LM, HRBP	With the mid-year review	PM24; PM25	Code items 19(1)–(2), 20(1)(b)(i)–(ii)
3.8 Health or personal disclosure	Employee discloses a health condition, disability, dependency, caregiving or personal crisis affecting work.	Pause any performance judgement on the affected work; offer EAP; refer to HR to consider Incapacity Track 2B or accommodation; restrict the information to those who need it. Record only that a disclosure was made and referred, not the detail, in the check-in note.	LM, HRBP, EAP	Same week (BP)	PM21 (restricted); Incapacity I10–I14	EEA s.6; POPIA ss.26, 32(1)(f), 32(2); Health Information Regulations, 2026; Code item 21
3.9 Absence and leave	Statutory leave or long absence during the cycle.	Re-base key results for the time available; do not carry missed targets from statutory leave into the rating (step 4.9).	LM, HRBP	On return	PM17; PM32	BCEA ss.22, 25–25C (as read in by *Van Wyk*, CC 2025); LRA s.187(1)(e)

Check-in agenda (15–30 minutes). (1) What has progressed since we last met — evidence against key results? (2) What is in the way, and what support do you need? (3) Feedback both ways: what is working, what to adjust. (4) Are priorities still right, or do key results need to change? (5) Development: what did you learn, what is next? (6) Agreed actions, owners and dates.

Coaching stance. Managers lead as well as manage. The GROW model (Goal, Reality, Options, Way forward) structures the conversation. In transactional-analysis terms, the manager speaks from the Adult ego state, balancing high connection (nurturing) with high task clarity, so that the relationship lands in the high-performance quadrant rather than comfort, apathy or fear. Smart trust is extended on evidence of character and competence and adjusted as evidence changes.



Remediation branch R — from early warning to the Incapacity flow

Branch R is the bridge between ordinary management and a formal incapacity process. It is short, developmental and documented. It does not duplicate the Incapacity flow: once a capacity cause is confirmed and informal steps have not worked, the PIP runs under Incapacity Track 2A (steps 2A.1–2A.10, forms I06–I09), and this flow keeps running alongside it.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
R1 Identify	Step 3.5 or 3.7.	Define the shortfall specifically and measurably against an agreed standard, KPI or competency, with dated examples over a representative period. A single bad month, a feeling or an untested complaint is not a shortfall.	LM	At the trigger	PM26	Code item 20(1)(a)
R2 Diagnose (router)	Shortfall defined.	Apply the diagnostic questions (below) with the employee: is the standard known, reasonable, achievable, within competence, recently changed; are resources, systems and workload adequate; are health or personal circumstances a factor; is the employee able but unwilling? Record the route chosen and why.	LM, HRBP	Within 5 working days of R1 (BP)	PM27	Code items 19(1), 20(1)(b); EEA s.6
R3 Informal counselling	Route: capacity, or cause still unclear.	Informal, non-disciplinary conversation: the standard, the gap, the employee's explanation, root causes and quick corrective steps; agree specific support. A short note is kept and shared — "informal" does not mean unrecorded. Follow up within 2–4 weeks.	LM, EMP	Follow-up in 2–4 weeks	PM26	Code item 19(1)(a)
R4 Fix the system	Route: systemic cause.	Fix the standard, tools, resources, workload or process; re-date the standard (step 1.7); close branch R for that gap. Record so that the same cause is not later blamed on the employee.	LM, HRBP	Per action plan	PM28	Code item 20(1)(b)(iii)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
R5 Open an incapacity case	Capacity cause confirmed and no sustained improvement after R3.	Refer to the ERO with the agreement, check-in notes, review forms, gap confirmation and counselling record. The case continues under Incapacity Track 2A: formal counselling meeting at which a representative is allowed (BP; Incapacity 2A.3), written PIP (BP 30–90 days depending on the role and the gap; Incapacity 2A.5), support log, interim reviews every 2–4 weeks, final review and outcome.	LM, ERO	Within 5 working days of the R3 follow-up (BP)	PM29 → Incapacity I05–I08	Code items 19–20
R6 Run the cycle alongside the PIP	PIP in force.	Check-ins continue weekly; PIP objectives supplement the scorecard for the period; the year-end rating reflects the PIP evidence. Lodging an objection does not suspend a PIP. No victimisation for objecting or for using the support.	LM, HRBP	During the PIP	PM21; I08	LRA s.5; BP
R7 Return to the grow path	PIP met (Incapacity 2A.8(a)).	Close in writing; monitor through ordinary check-ins for 3 months (BP). A successful PIP is not a disciplinary record. If the same gap recurs soon after, a shorter targeted PIP may be reasonable, but the employee must still be told and allowed to respond; record why.	LM, ERO	On outcome	I08 final review	Code item 19(2)
R8 Unsuccessful PIP	Standard not met (Incapacity 2A.8(c)).	Incapacity Phase 3 (alternatives short of dismissal: further training, a different or lower-graded role by agreement, adjusted duties, an extended PIP) and, only if none is reasonable, Phase 4 (incapacity enquiry before an independent chair).	ERO	Per Incapacity flow	I23–I30	Code item 20(1)(b)(iv)
R9 Wilful cause	Router: will not.	Route to the Misconduct flow (for example negligence, insubordination, refusal to perform a reasonable instruction). Do not run a PIP and a disciplinary process for the same facts at once.	LM, ERO	On routing	Misconduct flow	Code: misconduct items
R10 Senior or specialist employee	Item 20(2) applies.	An abbreviated route may be justified (Incapacity 2A.9): tell the employee of the concern, allow a response, and record why a formal PIP and warning were not required.	ERO, LA	Case-specific	I24	Code items 19(2), 20(2)



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
R11 Probationer	Employee on probation.	Route to Incapacity 2A.10: guidance and counselling, then representations before extending or not confirming.	LM, ERO	Before probation ends	PM20; I09	Code items 14–18

Diagnostic router (step R2)

Signal	Likely cause	Route	Evidence to record
Standard not in the agreement, never explained, or recently changed	Systemic: unclear or new standard	R4; re-communicate and re-date	Agreement extract; amendment date
Comparable employees also miss the target; tools, data or staffing missing	Systemic: unreasonable standard or resources	R4	Team performance comparison; resource log
Employee tries but lacks a skill, knowledge or aptitude	Capacity (cannot)	R3, then R5 to Incapacity Track 2A	Counselling note; skills gap; support offered
Decline after a health event, frequent absence, a disclosed condition, or signs of dependency	Ill health, injury or disability	Incapacity Track 2B; accommodation; EAP	Referral note only; medical detail kept by HR
Employee can perform and has done so, but refuses, ignores instructions or deliberately underperforms	Conduct (will not)	R9 to the Misconduct flow	Instructions given; capacity evidence; refusals
Persistent inability to work in harmony with colleagues or culture, not misconduct	Incompatibility	Incapacity Track 2D	Specific incidents; interventions
Concern appears soon after a grievance, protected disclosure, union activity, pregnancy announcement or EE complaint	Possible victimisation or discrimination	Pause; HRBP and LA review before any step	Timeline; independent review of the evidence



Employee side of Phase 3. Prepare for check-ins; keep evidence; raise obstacles early, including training, resources, health and personal circumstances; give feedback upward; respond in writing to a gap confirmation if you disagree.

Watch. The most common reason poor-performance dismissals fail is that the record shows no concern until the year-end review, or support that was promised and never delivered. The early-warning rule and the shared check-in note exist to prevent both.



Phase 4 — Annual assessment, rating and calibration

When: Month 12 to Month 1 of the next cycle. **Output:** final calibrated rating, signed annual review, and inputs to reward, talent, the WSP and the next agreement.

Five-point rating scale and bands

Rating	Label	Descriptor	Score band (BP)	Typical consequence
5	Exceptional	Consistently exceeds all key results; role model for behaviours; impact beyond own role	4.5–5.0	Top reward band; talent-pool review
4	Exceeds	Exceeds most key results; strong behaviours	3.5–4.4	Above-standard reward
3	Meets	Achieves agreed key results and behaviours — the expected, fully competent standard	2.5–3.4	Standard reward
2	Partially meets	Some key results missed; development needed	1.5–2.4	Development focus; reward reduced or withheld only as the scheme rules say
1	Does not meet	Most key results missed despite support	1.0–1.4	No performance reward; branch R or the Incapacity flow should already be running

Scoring. Each KPA and competency is rated 1–5. Overall score = (weighted results score × results weight) + (weighted behaviour score × behaviour weight), rounded to one decimal place (0.05 rounds up) and mapped to the band. A compliance-gate breach caps the results score at 2.4 (BP). Meets is the expected, fully competent standard: most people should be there, and that is a good outcome.



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.1 Self-assessment	Month 12.	Employee rates each KPA and competency with evidence and comments on support received.	EMP	Month 12, week 1	PM24	BP
4.2 Manager draft	Self-assessment in.	Draft rating with evidence and a short narrative per KPA; reconcile with quarterly provisional ratings; record any PIP status.	LM	Month 12, week 2	PM24	Code item 20(1)(a)
4.3 Pre-calibration data pack	Drafts in.	HR prepares distributions by team and level, and by race, gender, disability, age band, part-time status and leave status; flags every 1 and 5 and any rating that moved more than one point from mid-year.	HRBP, EEM	Month 12, week 3	PM30	EEA ss.5, 6(4); BP
4.4 Calibration panel	Data pack ready.	By division: review every 1 and 5 and all outliers; test consistency of standards across teams; check for bias (table below) and disparate impact. Use the expected distribution (roughly 20% high, 70% core, 10% below) as a lens to challenge a skewed spread, never as a quota: no rating is lowered to fit a curve.	CAL	Month 12, week 3–4	PM30; PM31	EEA s.6(1); BP
4.5 Record calibration changes	Rating changed.	Record the original rating, the new rating and the evidence-based reason; give the reasons to the manager, who tells the employee that the rating was calibrated and why.	CAL, HRBP	At the panel	PM31	EEA s.11 (onus); BP
4.6 Final review conversation	Ratings final.	The manager holds a conversation about the year and the next one, not a verdict reading: evidence, rating, strengths, development, career interests and next year's priorities.	LM, EMP	Month 1 of next cycle, weeks 1–2	PM24	BP
4.7 Sign and comment	Conversation held.	Both sign; the employee may record comments or lodge an objection (section 10). Signature acknowledges receipt, not agreement.	LM, EMP	Within 5 working days	PM24	BP
4.8 Consolidate	All reviews in.	HR consolidates results for reward, talent, the WSP and EE reporting; recalculates any rating changed on objection.	HRBP	Month 1, week 3	PM40	BP



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.9 Special cases	Leave, leavers, transfers, acting, part-year.	Rate only the period worked; never lower a rating because of statutory leave; split ratings across roles by time; rate acting periods separately; follow the scheme rules for leavers.	LM, HRBP	With 4.2	PM32	LRA s.187(1)(e); BCEA ss.25–25C (as read in by *Van Wyk*, CC 2025); EEA s.6
4.10 Executive ratings	Exco and the CEO.	Remco calibrates and approves executive ratings and outcomes.	REMCO	Before reward	PM30	Governance; BP

Bias and consistency checks at calibration

Bias	What it looks like	Panel check
Recency	Rating driven by the last quarter	Compare with all four quarterly provisional ratings
Halo / horns	One strength or weakness colours every KPA	Look for identical scores across unrelated KPAs
Leniency / severity	One manager rates everyone high or low	Compare the manager's mean with the divisional mean
Central tendency	Everyone rated 3 to avoid conversations	Ask for the evidence that separates people
Similarity / affinity	Higher ratings for people like the manager	Compare ratings by group with the same role and level
Leave and flexibility penalty	Lower ratings for people on leave, part-time or remote	Compare leave-status and work-pattern groups
Disparate impact	A designated group is over-represented at 1–2 or under-represented at 4–5 without explanation	Require an evidence-based explanation; escalate to EEM

Employee side of Phase 4. Complete the self-assessment with evidence; attend the final conversation; sign to acknowledge receipt; object within the time limit if you disagree.



Watch. A panel that changes ratings without recording reasons cannot later show that the system was equally applied, and the manager who did not attend cannot explain the change to the employee.



Phase 5 — Recognition, reward, talent, career and succession

Calibrated ratings inform, but do not mechanically decide, merit increases, incentives, promotions and talent placements, subject to the Remuneration Policy, affordability and Remco approval. Performance data then feeds the talent cycle: resourcing, developing, performing, succession planning and retaining. Talent reviews are held after calibration, annually, with a mid-year refresh for critical roles.

Recognition and reward

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.1 Merit recommendation	Calibrated ratings consolidated.	Apply the merit matrix (rating × position in the pay range, illustrative table below) within the approved budget; managers may recommend within a stated range with reasons.	HRBP, LM	Month 1, week 3	PM33	Remuneration Policy; BP
5.2 Incentives	Scheme rules.	Apply organisational and team gates, then individual multipliers by band, strictly under the scheme rules communicated before the period. A discretion reserved to Remco is exercised rationally and consistently, with reasons recorded.	HRBP, REMCO	Month 1	PM33	LRA s.186(2)(a); CL: *Apollo Tyres* (DA1/11, LAC, 21 February 2013)
5.3 Equal-pay check	Before approval.	Compare proposed outcomes for employees doing the same, similar or equal-value work by race, gender and disability; every difference must be explained by a recognised factor (performance under an equally applied system, seniority, experience, scarcity, and so on); correct unexplained differences before payment. Feed the EEA4 income-differential analysis.	HRBP, EEM	Before Remco	PM33; PM40	EEA s.6(4)–(5); EE Regulations, 2025 (GN 6125) reg 7(1)(c), 7(2); Code on Equal Pay (GN 448, 2015)
5.4 Approve and pay	Check complete.	Remco approves the pool and executive outcomes; payroll processes with PAYE; letters issued.	REMCO, PAY	Month 1–2	Reward letters	Income Tax Act Fourth Schedule

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.5 Separate the conversations	Reward letters ready.	Communicate pay outcomes separately from, and after, the development conversation where possible (BP: 2–4 weeks), so the development conversation is not swamped by money.	LM	Month 2	—	BP
5.6 Below standard	Rating 1 or 2.	A low rating does not by itself constitute a sanction; it triggers support. Withholding a discretionary bonus follows the scheme rules as communicated. Recovering an overpaid bonus by deduction needs written consent for a specific debt or another lawful basis.	HRBP, PAY	With 5.1–5.4	PM07	BCEA s.34; BP
5.7 Intrinsic recognition	All year.	Specific praise in check-ins, peer recognition ("high-five") posts, stretch assignments, visibility with leadership.	LM, peers	Continuous	PM22	BP

Illustrative merit matrix (multiple of the approved average increase, BP)

Calibrated rating	Below range midpoint (< 90%)	At midpoint (90–110%)	Above midpoint (> 110%)
5 Exceptional	1.8×	1.5×	1.2×
4 Exceeds	1.4×	1.2×	1.0×
3 Meets	1.1×	1.0×	0.7×
2 Partially meets	0.5×	0.4×	0.2×
1 Does not meet	0 (support plan)	0	0

The matrix is a starting point; cost-of-living or collectively agreed increases are paid outside it unless the agreement says otherwise. Model the matrix for disparate impact before adopting it (step 0.7).



Talent, career and succession

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.8 Prepare 9-box placements	Calibration complete.	HR prepares placements from calibrated ratings (performance) and manager nominations for potential (aspiration, ability, agility), with evidence for each potential nomination.	HRBP, LM	Month 1–2	PM34	BP
5.9 Talent panel	Placements prepared.	Exco and divisional heads validate placements; identify critical roles and successors (ready now, ready in 1–2 years, ready in 3+ years); check the EE profile of each pool against the EE plan's annual targets (aligned to the sectoral targets, GN 6124, for the four upper occupational levels, and the 3% disability target; designated employers; others BP).	TC, EEM	Month 2	PM34; PM35	EEA ss.15(2)(d), 15A, 20(2A); BP
5.10 Career conversation and gap to next position	Placement validated.	Compare the employee's current competency profile with the target role's profile (PM04); list gaps; translate them into PDP actions — stretch roles, rotations, mentoring, formal programmes. Make clear that being on a slate is not a promise of promotion: promotion still goes through the Resourcing flow (path c), with the successor assessed like every other candidate.	LM, EMP, HRBP	Month 2–3	PM14; PM18; PM36	LRA s.186(2)(a); CL: *Noonan v SSSBC* (PA1/11) [2012] ZALAC 18; Resourcing flow
5.11 Succession slates and EE	Panel complete.	Maintain the succession register and talent pools; link development pipelines to the EE plan's annual targets and numerical goals, written into the plan itself (Resourcing v2.0 step 0.2); record how successors were identified, because the Resourcing flow relies on that record for any ring-fenced or direct appointment. Resourcing v2.0 form RS09 (succession / talent register extract, steps 1.4 and path (c)) is an extract of PM35.	TC, EEM, HRBP	Month 2; mid-year refresh for critical roles	PM35	EEA ss.15(2)(d), 20; Resourcing v2.0 steps 0.6, 1.4 (RS09)
5.12 Retention risks	Star or high performer flagged at risk.	Name an action and an owner (development, role, recognition, pay review) and a date.	TC, LM	Month 2	PM35	BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.13 Confidentiality and access	Placements recorded.	Placements are shared with the panel, the manager and HR; employees receive the development outcome. Because a placement is the employee's personal information, it may be requested under POPIA s.23 or PAIA: write placements and potential notes on the assumption that the employee may read them.	HRBP, IO	Continuous	PM34	POPIA s.23; PAIA s.50
5.14 Training plan and WSP	PDPs updated.	L&D compiles formal learning from PDPs into the training plan and the WSP; captures delivered training for the ATR; the training committee is consulted before submission by 30 April.	L&D, SDF, TCOM	Extract by end-February; submit by 30 April	PM38	Skills Development Act; SETA Grant Regulations (GN R.990, GG 35940, 2012) reg 4

9-box talent grid

Performance = calibrated rating; potential = talent-panel assessment of aspiration, ability and agility.

Potential ↓ / Performance →	Low	Moderate	High
High	Potential gem — coach, check role fit	High potential — stretch, accelerate	Star — succession slate, retain
Moderate	Inconsistent player — clarify, support	Core player — develop in role	High performer — broaden, recognise
Low	Risk — diagnose (R2); branch R or role review	Average performer — targeted development	Solid performer — retain, deepen expertise

Watch. "Low potential" judgements can conceal age, disability or gender bias. Require evidence for every potential nomination, and review the EE profile of each box.



Phase 6 — Governance, reporting and learning

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
6.1 Process-health metrics	Quarterly.	Report the metrics below to Exco by division.	HRBP	Quarterly	PM40	Governance; BP
6.2 Rating and adverse-impact review	Annually after calibration.	Rating distribution and reward outcomes by race, gender, disability, age band, part-time and leave status; potential nominations by group; explain or correct disparities.	HRBP, EEM	Month 2	PM40	EEA ss.5, 6, 15; POPIA s.71
6.3 Equal-pay and EEA4 feed	Reward complete.	Pass the equal-pay check results into the income-differential analysis and the EEA4; record remedial measures in the EE plan.	EEM	Per DEL cycle (2026: online close 15 January 2027)	PM40; EEA4	EEA ss.21, 27
6.4 WSP and ATR	Annually.	Submit the WSP (planned training) and ATR (training delivered) to the SETA after training-committee consultation.	SDF, L&D	30 April each year	PM38	Skills Development Act; SETA Grant Regulations (GN R.990, GG 35940, 2012) reg 4
6.5 B-BBEE skills evidence	Verification cycle.	Provide training spend and learner records from the ATR for the skills development element (Code Series 300 of the B-BBEE Codes, or the applicable sector code).	L&D	Per verification	PM38	B-BBEE Codes of Good Practice (2013, amended 31 May 2019), Code Series 300 or sector code (verify GG numbers)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
6.6 Objection and PIP analysis	Annually.	Objections lodged and upheld by division and manager; PIP outcomes; time from first concern to PIP; incapacity and dispute outcomes. Investigate if more than 10% of objections are upheld.	HRBP, ERO	Month 3	PM40	BP
6.7 Policy refresh and legislative watch	Annually or on change.	Review the policy against new case law, any amendment to the Code, the EE Regulations and equal-pay criteria, Information Regulator guidance on s.71, and the BCEA threshold. Track the Labour Law Amendment Bill, 2025 (published for comment 26 February 2026; DRAFT, not law), in particular its probation and dismissal-protection proposals.	LA, HRBP	Annually	PM01	BP
6.8 Board and Remco reporting	Quarterly and annually.	Metrics; distribution and equal-pay findings; succession coverage for critical roles; regretted turnover among top-rated employees; disputes.	HRBP	Quarterly	PM40	Governance
6.9 Records and archive	Cycle closed.	File all agreements, reviews, notes and outcomes; note any unsigned document with the reason; apply the retention schedule; restrict access.	HRBP, IO	Month 3	PM39	POPIA ss.14, 19; BCEA s.31

Process-health metrics (reported to Exco quarterly)

Metric	Target (BP; to be confirmed by the organisation)
Performance agreements signed within 30 days	≥ 95%
Check-ins held at the agreed frequency	≥ 85%
Reviews submitted on time	≥ 95%
PDPs with at least one completed action per quarter	≥ 80%
Below-standard year-end ratings with a mid-year gap confirmation on file	100%



Metric	Target (BP; to be confirmed by the organisation)
Objections upheld after review	Tracked; investigate if > 10%
PIPs completed successfully	Tracked by division
Regretted turnover among top-rated employees	Below organisational benchmark
Rating and reward distribution by EE designated group	No unexplained disparity
Critical roles with at least one ready-now or ready-in-1–2-years successor	≥ 80%
WSP/ATR submitted by 30 April	Yes
Employee rating of the process as fair and useful (survey)	Improving year on year

Implementation roadmap and change management

Phase	Key activities	Indicative duration (BP)
1. Diagnose	Map the current performance-management user experience, including the "desire paths" people take around the system; review policy and legal gaps against this flow; consult unions and staff (step 0.2)	4–6 weeks
2. Design	Finalise scorecard structure, rating scale, reward rules, calendar, templates and system configuration through a design-thinking cycle (empathise, define, ideate, prototype, test); run the disparate-impact test (step 0.7)	6–8 weeks
3. Capacitate leaders	Training on goal-setting, coaching, SBI feedback, smart trust, difficult conversations, calibration and Code items 14–20	4–6 weeks, then ongoing
4. Pilot	Run one quarter in 1–2 divisions; collect feedback	1 quarter
5. Iterate and roll out	Refine; launch organisation-wide at the start of the next cycle	1 cycle
6. Embed	Quarterly process-health review; annual policy review	Ongoing

Change considerations. Expect people to move through the change curve (shock, denial, frustration, experimentation, integration). Communicate the why early, involve teams in defining their own objectives, and build trust before raising accountability, so that teams avoid Lencioni's dysfunctions of absent trust, fear of conflict and avoided accountability. Do not link the new system to pay in its first cycle unless the rules have been consulted and communicated (step 0.2).

Per-cycle compliance checklist (PM39)

Gate	Check before moving on
Before the cycle	Policy approved and consulted; reward rules communicated in writing; job profiles current; rating scale and bands published; privacy notice issued; AI features governed; calendar published; managers trained.
Agreement (day 30)	Signed or disagreement recorded with reasons; objectives SMART, within control and comparable across the same role; accommodation recorded; PDP agreed; probation terms set; senior-employee expectation stated.
During the year	Check-ins at the agreed rhythm, notes shared; changed standards dated with a lead-in; health disclosures referred and restricted; written gap confirmation for anyone below Meets at mid-year; branch R decisions recorded.
Year-end	Self-assessment; evidence-based narrative; calibration with recorded reasons; leave neutral; final conversation held; signatures or noted refusals; objection window explained.
Reward and talent	Scheme rules applied; equal-pay check done before payment; Remco approval; potential nominations evidenced; EE profile of pools reviewed; PDP learning in the WSP.
Close	File complete; retention dates set; metrics reported; lessons logged for the policy refresh.

Parallel track — objections, grievances and disputes

This track opens on the day the agreement is signed and runs until the last referral window closes. Its events are triggered by what employees, representatives or regulators do, not by the calendar. Most rating disagreements should be resolved in conversation before they become formal; no employee may be victimised for objecting.

Event	Who	Trigger	Organisational action	Deadline	Form	Authority
P1 Informal objection	Employee	Disagrees with objectives, a provisional or final rating.	Discuss with the manager; consider the evidence; adjust or explain.	Within 5 working days of the review	PM37	BP
P2 Formal objection	Employee (may be accompanied)	P1 unresolved.	Written objection to the NLM and HR stating the KPA, the rating disputed and the evidence relied on. Review meeting; the NLM (with HR) confirms, amends or refers back to calibration; outcome in writing. This concludes the internal objection. It does not suspend a PIP.	Lodge within a further 5 working days; meeting within 10 working days	PM37	BP
P3 Grievance	Employee	Matter wider than the rating (treatment, process, manager conduct).	Grievance Procedure; keep separate from P2 unless the employee asks to combine.	Per Grievance Procedure	Grievance form	Collective agreement; BP

Event	Who	Trigger	Organisational action	Deadline	Form	Authority
P4 Unfair labour practice	Employee	Unfair conduct relating to a benefit (merit increase, bonus), promotion, demotion, training or probation. (Probation short of dismissal only; a dismissal during or at the end of probation is an unfair dismissal dispute: 30 days, P6.)	Assemble the file: agreement, check-ins, reviews, calibration record, scheme rules, reward calculation, equal-pay check. Show the rules were applied rationally and consistently.	Referral to CCMA or council within 90 days	PM39	LRA ss.186(2)(a), 191(1)(b)(ii); CL: *Apollo Tyres* (DA1/11, LAC, 21 February 2013)
P5 Unfair discrimination or equal pay	Employee	Rating, potential nomination or pay difference allegedly based on a listed or arbitrary ground.	Brief LA; the employer carries the onus on a listed ground. Produce the calibration and adverse-impact record and the equal-pay check.	Refer to the CCMA within 6 months of the act or omission (s.10(2)); if unresolved, to the Labour Court, or to CCMA arbitration where the employee earns below the BCEA earnings threshold, alleges sexual harassment, or the parties consent (s.10(6))	PM31; PM33; PM40	EEA ss.6, 10(2), 10(6), 11

Event	Who	Trigger	Organisational action	Deadline	Form	Authority
P6 Dismissal for poor performance	Employee	Dismissed after the Incapacity flow.	Run through the Incapacity flow's response pack, drawing on this flow's records.	Refer within 30 days of the dismissal or, if later, of the employer's final decision to dismiss or to uphold the dismissal on appeal	Incapacity I36	LRA ss.188, 191(1)(b)(i); Code items 19–20
P7 Victimisation or detriment	Employee	Adverse treatment after objecting, a protected disclosure, union activity or an EE complaint.	Independent review; route to the PDA flow where a disclosure is involved.	Promptly	PDA flow	LRA s.5; PDA s.3; EEA s.51
P8 Harassment by performance management	Employee	Alleges that performance management is being used to bully or humiliate.	Investigate under the harassment policy; separate the reviewer if needed. Reasonable performance management carried out fairly is not harassment.	Per harassment policy	Harassment complaint	Harassment Code (GN R.1890, GG 46056, 18 March 2022)
P9 Constructive dismissal	Former employee	Resigns alleging intolerable treatment (for example a sham PIP).	Collate the record; LA assesses.	Refer within 30 days	PM39	LRA s.186(1)(e)
P10 Contractual bonus claim	Employee or former employee	Claims a contractual bonus or increase.	LA assesses the contract and scheme rules.	Prescription: 3 years	PM07	BCEA s.77(3); Prescription Act

Event	Who	Trigger	Organisational action	Deadline	Form	Authority
P11 POPIA or PAIA request or complaint	Employee	Requests access to performance records, 9-box placement or calibration notes; or complains about processing.	IO responds; disclose own records; protect others' personal information; log the decision.	PAIA within 30 days of receipt (s.56(1)); POPIA within a reasonable time	PM08	POPIA ss.23, 24, 71, 74; PAIA ss.50, 56

Employee obligations and conduct

Performance management is two-sided. The employer should explain these duties in the policy and the agreement, without using them to discourage objections.

Obligation	Who	When	Consequence if not met	Authority
Co-create objectives and raise concerns about reach, resources or health at the start	Employee	Phase 1–2	Objectives may be set by the employer if reasonable	Contract; BP
Work to the agreed standard and follow reasonable instructions	Employee	All year	Branch R; refusal may be misconduct	Common law duty; Code
Prepare for check-ins and reviews; keep evidence	Employee	All year	Rating made on the manager's evidence	BP
Use the support offered and say early if it is not working	Employee	During branch R and any PIP	Weakens a later claim that support was inadequate	Code item 19(1)
Disclose a health or personal factor affecting work if the employee wants it considered	Employee	As soon as practicable	Matter assessed on the information available	Code item 21; POPIA s.26
Give honest, specific 360 feedback and keep it confidential	Raters	On request	Feedback excluded; possible misconduct for breach of confidentiality	BP
Rate on evidence, hold check-ins, deliver promised support, record reasons	Managers	All year	Measured on the people-leadership KPA; process failures weaken any later case	BP
Declare conflicts and keep calibration and talent discussions confidential	Panel members	Before and after panels	Recusal; disciplinary action	BP



Obligation	Who	When	Consequence if not met	Authority
Object and refer disputes in time	Employee	5 + 5 working days; ULP 90 days; EEA 6 months; dismissal 30 days (from dismissal or the final appeal decision)	Condonation needed	LRA s.191(1)(b); EEA s.10; CCMA Rules rule 3

Rights the organisation must not obstruct. To know the standard in advance and have a reasonable lead-in for a changed one; to support and a fair opportunity to improve; to respond to any concern (item 19(2)); to be accompanied at formal PIP and objection meetings (BP, as policy) and at incapacity enquiries; to reasonable accommodation; to freedom from unfair discrimination in ratings and pay; to access and correct personal information and not to be subject to a solely automated decision; to object, raise a grievance and refer disputes without victimisation; to join a union.

Hand-offs, RACI and interfaces register

RACI matrix

R = Responsible, A = Accountable, C = Consulted, I = Informed.

Activity	LM	EMP	HRBP	EXCO / REMCO	CAL / TC	L&D / SDF	EEM	ERO	IO / LA
Policy, reward rules and consultation	C	C (via TU)	R	A	–	C	C	C	C
Organisational scorecard and cascade	R	C	C	A	–	–	C	–	–
Job profiles and gap analysis	R	C	A	–	–	C	–	–	–
Individual objectives and weighting	A / R	R	C	–	–	–	–	–	–
Agreement and PDP	A / R	R	C (log)	–	–	C	–	–	–
Check-ins and feedback	A / R	R	I	–	–	–	–	–	–
Quarterly and mid-year reviews	A / R	R	C	–	–	–	–	–	–
Branch R (R1–R4)	A / R	R	C	–	–	C	–	I	–
Referral to Incapacity flow (R5)	R	I	C	–	–	–	–	A	C
Calibration	R	–	R (facilitate)	A (Exco chair)	R	–	C	–	–
Final rating conversation	A / R	R	I	–	–	–	–	–	–
Objection (P2)	C	R	R	–	C (refer back)	–	–	–	C

Activity	LM	EMP	HRBP	EXCO / REMCO	CAL / TC	L&D / SDF	EEM	ERO	IO / LA
Merit and incentives	R (recommend)	I	R	A (Remco)	–	–	C	–	–
Equal-pay check	–	–	R	I	–	–	A	–	C
Talent and succession	C	I	R	A	R	C	C	–	–
WSP / ATR	C	I	C	I	–	A / R	C	–	–
Privacy, AI governance and access requests	–	I	R	I	–	–	–	–	A
Metrics and reporting	I	I	R	A	–	C	C	C	–

Interfaces register

Send the minimum information needed, keep proof of what was sent, to whom and when, and record it on the file.

Party or system	Trigger	What is handed over	When	Step	Authority
Trade union / workplace forum	New or changed system; reward criteria	Consultation proposal; scheme rules	Before launch	0.2	LRA ss.64(4), 84(1)(h)–(i)
Remco	Reward pool; executive scorecards and ratings	Pool proposal; executive calibration; equal-pay summary	Month 0; Month 1	0.3, 2.8, 4.10, 5.4	Governance
Incapacity flow (ERO)	R5 referral; probation; senior route	Agreement, check-in notes, reviews, gap confirmation, counselling record	On referral	R5, R10, R11, 2.7	Code items 14–20
Misconduct flow (ERO)	Router: will not	Instructions, capacity evidence, refusals	On routing	R9	Disciplinary Code

Party or system	Trigger	What is handed over	When	Step	Authority
EAP provider	Health or personal disclosure	Referral only, with consent	Same week	3.8	POPIA ss.26, 32(2); Health Information Regulations, 2026
Payroll	Reward approved	Approved increases and incentives	Month 1–2	5.4	Income Tax Act
EE Manager and EE forum	Calibration; reward; talent	Distribution and pay data by group; pool profiles	Month 12–2	4.3, 5.3, 5.9, 6.2	EEA ss.16, 21, 27
SETA	Annual	WSP and ATR	30 April	5.14, 6.4	Skills Development Act
Resourcing flow	Vacancy; succession appointment	Job profiles; succession register; readiness evidence; RS09 is an extract of PM35; probation reviews (RS40)	On vacancy	0.4, 5.11	Resourcing v2.0 steps 0.5–0.6, 1.4, 5.10, path (c)
TES provider	Placed worker	Objectives; performance input; concerns; deemed employees (0.15) are managed directly by the client	Per placement	0.15, 2.9	LRA ss.198, 198A(3)(b), (5)
HRIS / app vendor	Processing performance data	Operator agreement; security measures	Before use	0.8	POPIA ss.20–21
Information Regulator	Complaint	Response bundle	On notice	P11	POPIA s.74
CCMA / bargaining council / Labour Court	Dispute	Performance file; response bundle	On referral	P4–P10	LRA s.191; EEA s.10

Adjacent GBS flows. Resourcing (job profiles, the succession register and promotion through path (c)); Incapacity (Track 2A PIP, Track 2B ill health, 2A.9 senior route, 2A.10 probation); Misconduct (wilful underperformance); PDA (detriment after a disclosure); COIDA (work injury affecting performance); Off-Boarding (leavers' bonus treatment and final ratings); Operational Requirements (performance is a selection criterion only if fair, objective and agreed; ratings used for selection must come from this flow's calibrated record); GBS POPIA and AI Compliance flows (performance data, s.71 and AI tools, step 0.8).



Forms register

Forty forms support the flow, numbered in the order used. None is a statutory form; the WSP, ATR and EEA4 are prescribed returns fed by these forms. The source process names appendices A–H and PIP templates T1–T7; their place in this register is shown below. The PIP templates are not duplicated: they are the Incapacity flow's I-series forms, so that one set of PIP documents is used across the GBS suite. The project contains no existing GBS performance-management templates.

Form	Name	Used at	Source process ref	Existing GBS link
PM01	Performance management policy	0.1, 6.7	Policy hierarchy	Policy Interaction Matrix (Architecture doc)
PM02	Consultation and change record	0.2	—	cf. Op Req consultation records
PM03	Performance delegation of authority matrix	0.3	—	cf. Resourcing RS02
PM04	Job profile (purpose, KPAs, inherent requirements, competencies)	0.4, 1.3, 5.10	—	Incapacity I02; Resourcing RS13
PM05	Competency framework with level descriptors	0.4, 1.4	—	—
PM06	Rating scale, scoring rules and band table	0.5, 4.x	Stage 5 scale	—
PM07	Remuneration, merit matrix and incentive scheme rules	0.6, 5.1–5.6, P10	Stage 6	Remuneration flow (planned)
PM08	Performance data privacy notice and retention schedule	0.9, P11	Section 14	cf. Resourcing RS08
PM09	HRIS / AI tool governance and s.71 review record	0.8	Section 14	cf. Resourcing RS05
PM10	Calibration panel and talent committee terms of reference and confidentiality undertaking	0.11	—	—
PM11	Annual performance calendar	0.13	Section 4	—
PM12	Organisational and divisional scorecard	1.1	Stage 1	—



Form	Name	Used at	Source process ref	Existing GBS link
PM13	OKR matrix (objective, KRA, indicator, stakeholders, feedback, iteration actions, development needs, comments)	1.2, 1.10, 3.3	Appendix B	—
PM14	Gap analysis: current role and gap to next position	1.3, 5.10	—	—
PM15	Individual scorecard and performance agreement (with accommodation note)	1.4–1.9, 2.1–2.8	Appendix A	—
PM16	Objective quality and fairness checklist	1.6	Stage 1 rules	—
PM17	Standards acknowledgement and amendment record	1.7, 2.5–2.6, 3.9	—	Incapacity I03
PM18	Personal development plan	2.3, 3.3, 5.10	Appendix E	—
PM19	Agreement disagreement referral	2.4	Stage 2 step 4	—
PM20	Probation agreement and review record	2.7, R11	Section 12.4	Incapacity I09; Resourcing RS40
PM21	Check-in note	3.1, 3.8, R6	Appendix C	—
PM22	Feedback and recognition log	3.2, 5.7	—	—
PM23	360 / stakeholder feedback request and summary	3.4	—	—
PM24	Quarterly, mid-year and annual review form (self, manager, agreed rating)	3.6–3.7, 4.1–4.7	Appendix D	—
PM25	Mid-year gap confirmation	3.7	Stage 4 mid-year	—
PM26	Early-warning and informal counselling record	3.5, R1, R3	T1	Incapacity I06 (informal part)
PM27	Diagnostic router record	R2	Section 12.1	—
PM28	System-fix action log	R4	Section 12.1	—
PM29	Referral memo to the ERO	R5	—	Incapacity I05
—	Notice to attend PIP meeting; PIP; progress review; outcome letters	R5–R8	T2–T7	Incapacity I06, I07, I08, I24, I31 (see section 15)

Form	Name	Used at	Source process ref	Existing GBS link
PM30	Calibration pack and bias checklist	4.3–4.4, 4.10	Appendix F	—
PM31	Calibration change record with reasons	4.4–4.5, P5	—	—
PM32	Special-case rating record (leave, transfer, acting, part-year)	1.9, 3.9, 4.9	—	—
PM33	Reward recommendation and equal-pay check	5.1–5.4, P5	Stage 6	Remuneration flow (planned)
PM34	Talent review / 9-box sheet	5.8–5.9, 5.13	Appendix G	Resourcing RS09
PM35	Succession slate and retention action register	5.9, 5.11–5.12	Stage 7	Resourcing RS09
PM36	Career conversation record	5.10	Stage 7 step 3	—
PM37	Objection form and outcome	P1–P2	Appendix H	—
PM38	WSP/ATR data extract and training committee consultation record	0.10, 5.14, 6.4–6.5	—	—
PM39	Per-cycle compliance checklist and performance file index	6.9, P4, P9	Manager checklist	—
PM40	Process-health, rating-distribution and equal-pay dashboard	0.7, 4.3, 4.8, 6.1–6.3, 6.6, 6.8	Section 14 metrics	EE flow (planned)

Timeline calendar and liability register

Internal targets are best practice, counted from the start of the financial year (Month 1) or in working days. Statutory periods are calendar days: exclude the first day and include the last; if the last day is a Saturday, Sunday or public holiday, it moves to the next working day (CCMA Rules, rule 3; Interpretation Act 33 of 1957 s.4 for other periods).

Annual cycle calendar (BP)

When	Event	Owner	Authority	Type
Month −1 to 0	Strategic plan; organisational scorecard; reward budget and scheme rules confirmed and communicated	EXCO, REMCO	Governance; PM07	BP
Month 0–1	Cascade sessions; job profiles confirmed; individual objectives drafted and weighted	LM, EMP	Code item 20(1)(b)(i)	BP
Day 30	Agreements and PDPs signed (≥ 95%); HR log	LM, HRBP	—	BP
Fortnightly	One-on-one check-ins (weekly for new starters and branch R)	LM	Code item 19(1)	BP
Monthly	Deep-dive on the OKR matrix and PDP	LM, EMP	—	BP
End Q1 (Month 3)	Quarterly review; submit within 10 working days; process metrics to Exco	LM, HRBP	—	BP
End Q2 (Month 6)	Mid-year review; written gap confirmations; talent refresh for critical roles	LM, HRBP, TC	Code items 19–20	BP
End Q3 (Month 9)	Quarterly review; metrics to Exco	LM, HRBP	—	BP
Month 12, weeks 1–4	Self-assessment; manager drafts; data pack; calibration panels	EMP, LM, CAL	EEA s.6	BP
Month 1 (next), weeks 1–3	Final conversations; signatures; objection window (5 + 5 working days); consolidation	LM, HRBP	—	BP



When	Event	Owner	Authority	Type
Month 1–2 (next)	Equal-pay check; Remco approval; payroll; reward letters; talent panel; succession slates	HRBP, REMCO, TC	EEA s.6(4)	BP
End-February	PDP and training data extracted for the WSP/ATR	L&D, SDF	—	BP
30 April	WSP and ATR submitted to the SETA	SDF	Skills Development Act	Statutory deadline (grant)
1 September – 15 January	EE reporting cycle (EEA2, EEA4); 2026 cycle online close 15 January 2027	EEM	EEA s.21	Statutory

Statutory and regulatory windows

Window	Length	Starts	Authority
Unfair labour practice referral (benefits, promotion, demotion, training, probation)	90 days	Act or omission, or when the employee became aware	LRA s.191(1)(b)(ii)
Unfair dismissal referral (poor performance; constructive dismissal)	30 days	Dismissal or, if later, the final decision to dismiss or uphold it on appeal	LRA s.191(1)(b)(i)
EEA unfair discrimination / equal-pay referral	6 months	Act or omission	EEA s.10(2)
PAIA response (private body)	30 days	Request	PAIA s.56(1)
Retention of remuneration records	At least 3 years	Last entry	BCEA s.31
Contractual bonus claim	3 years	Debt due	Prescription Act s.11
WSP/ATR submission	Annually by 30 April	—	SETA Grant Regulations (GN R.990, GG 35940, 2012) reg 4

Window	Length	Starts	Authority
EE report 2026 cycle	Online close 15 January 2027	Opened 1 September 2026	EEA s.21

Liability register

Exposure	Who is exposed	Consequence	Authority
Unfair dismissal for poor performance (no known standard, no support, no opportunity to respond)	Employer	Reinstatement, re-employment or compensation up to 12 months' remuneration	LRA ss.193, 194(1); Code items 19–20
Automatically unfair dismissal (discrimination, pregnancy, victimisation)	Employer	Compensation up to 24 months' remuneration	LRA ss.187, 194(3)
Unfair labour practice (bonus, increase, promotion, training, demotion)	Employer	Compensation up to 12 months; protected promotion or benefit; corrective order	LRA ss.186(2)(a), 193(4), 194(4)
Unfair discrimination in ratings, potential or pay	Employer	Damages and compensation; equalisation orders; orders to remedy	EEA ss.6, 11, 50
EE non-compliance (plan, reporting, income differentials)	Designated employer	Fines from the greater of R1.5m or 2% of turnover, rising for repeats; loss of s.53 certificate	EEA Schedule 1; s.53
Unlawful processing (no notice, excessive data, solely automated decisions, breach)	Employer as responsible party	Enforcement notice; administrative fine up to R10 million; civil damages	POPIA ss.95, 99, 109
Unlawful bonus deduction or clawback	Employer	Repayment; BCEA compliance order	BCEA ss.34, 69
Breach of a contractual bonus or increase	Employer	Contractual damages	BCEA s.77(3); common law
Constructive dismissal from abusive performance management	Employer	Compensation up to 12 months (24 if automatically unfair)	LRA ss.186(1)(e), 194

Exposure	Who is exposed	Consequence	Authority
Late or missing WSP/ATR	Employer	Loss of the mandatory grant (20% of levies paid) and discretionary-grant eligibility, unless the SETA granted an extension of up to one month on written request (reg 4(8))	SETA Grant Regulations (GN R.990, GG 35940, 2012) reg 4
Victimisation for objecting or disclosing	Employer; individual managers (disciplinary)	Remedies under the LRA, EEA and PDA	LRA s.5; EEA s.51; PDA s.4

Source review, corrections to the source process and drafting issues

No existing GBS performance-management materials were available. The project contains no GBS performance policy or templates, so this section cannot list corrections to GBS materials as the Misconduct and Incapacity flows did. When the client's policy is available, compare it with this flow using the Policy Interaction Matrix (Aligned / Gap / Conflict / Silent / Better than legal minimum). Instead, this section records the points in the source process supplied for this flow that were corrected or supplemented, and the alignment points with other GBS flows.

Corrections and refinements to the source process

#	Source process says	Correction or refinement
1	Guiding principles and section 15: development "as Schedule 8 of the LRA requires"; leader training on "Schedule 8 compliance"	Schedule 8 was repealed on 4 September 2025. Cite the Code of Good Practice: Dismissal, 2025 (GN 3470, GG 53294), items 19–20 (poor work performance) and 14–18 (probation).
2	Section 2 table: "LRA Schedule 8 … (items 8–11)"	Wrong items even under the repealed Code: old items 8–9 dealt with poor work performance; items 10–11 dealt with ill health. Replace with Code items 19–20, and item 21 only where the cause is ill health.
3	Section 2: consider whether the employee knew the standard, whether it was reasonable, and alternatives	Incomplete against item 20(1). Add: whether the employee was given a fair opportunity to meet the standard, and whether dismissal was an appropriate sanction; and item 19(2), the opportunity to respond before dismissal.
4	Section 1.5 and 5: "A changed standard … reasonable lead-in (Schedule 8)"	Keep the rule; cite item 20(1)(b)(i)–(ii) and add a BP minimum lead-in (step 1.7).
5	Section 12.2 step 2: informal counselling is an "off-the-record discussion"	An unrecorded conversation cannot later prove that the employee knew of the concern. Keep it informal and non-disciplinary, but keep a short, shared note (PM26).



#	Source process says	Correction or refinement
6	Section 12.2: PIP templates T1–T7 and 6–12 week PIP	Avoid a second PIP template set. Use the Incapacity flow's forms: T1 → PM26 / I06; T2 → I06 (add a notice-to-attend section); T3 → I07; T4 → I08 interim review; T5 successful → I08 final review; T6 extended → I08 with extension reasons; T7 unsuccessful → I08 final review and I24 decision memo. The PIP period follows Incapacity step 2A.5 (BP 30–90 days); v1.1 replaced the earlier 6–12 week figure (see R5).
7	Section 12.4 probationers	Cite items 14–18: probation now assesses suitability as well as performance; reasonable guidance and counselling (item 17); representations before extension or non-confirmation (item 18(1)); probation not to be used to deprive employees of permanent status (item 15(2)). Route through Incapacity step 2A.10.
8	Section 12.5: shorter process for senior and specialist employees because they can self-assess	Item 20(2) also covers a highly skilled employee where a departure from a high standard would have severe consequences; in both cases item 19(2) still requires an opportunity to respond. Record the justification (Incapacity 2A.9).
9	Section 9 table: rating 1 → "PIP (section 12) if not already in place"	A PIP should never start because of a year-end rating: by then the concern must already have been confirmed at mid-year (step 3.7). A PIP also follows diagnosis (R2), not the rating alone.
10	Section 9: "for example 2.5–3.4 = Meets"	Complete band table and rounding rule added (section 7), with a compliance-gate cap.
11	Section 13: disputes about an unfair labour practice "(for example promotion or benefits)"	A rating is not by itself an unfair labour practice. Add demotion, training and probation (s.186(2)(a)); state the 90-day ULP, 30-day dismissal and 6-month EEA referral periods; note the uncertainty over discretionary bonuses as "benefits" (CL: *Apollo Tyres*, DA1/11, LAC 2013: a benefit can include an advantage granted under a discretionary policy or practice).
12	Section 10: equal-pay check "(EEA s 6(4))"	Correct, but add the reason it matters: performance justifies a pay difference only under an evaluation system that is equally applied (EE Regulations, 2025 (GN 6125) reg 7(1)(c), 7(2): employees equally subject to a consistently applied system, and the difference applied proportionately; Code on Equal Pay, GN 448, 2015). Calibration and the adverse-impact review prove equal application.
13	Section 10: withholding a discretionary bonus follows scheme rules communicated in advance	Keep; add that clawback or recovery by deduction needs a lawful basis (BCEA s.34) and that Remco discretion must be exercised rationally and recorded.
14	Section 11: placements confidential; employees receive "the development outcome, not a box label"	Confidential is not the same as undisclosable. A 9-box placement is the employee's personal information and may be requested under POPIA s.23 or PAIA; write placements and potential notes on that basis (step 5.13).

#	Source process says	Correction or refinement
15	Section 14: records kept for "the longer of the statutory retention period or the life of any dispute"	There is no single statutory period for performance records. Set a schedule (step 0.9): life of employment plus 3 years (BP); BCEA s.31 3 years for remuneration records; incapacity and dispute files until finally determined.
16	Section 14: optional "emotional weather" pulse check-ins	Wellbeing responses may reveal health information (special personal information, POPIA s.26). Require anonymity, a minimum aggregation group and no use in ratings (step 0.8).
17	Section 2: collective and recognition agreements cover "representation rights and any agreed performance or bonus rules"	Add the duty to consult before introducing or changing a pay-linked system, the risk of a unilateral change to terms (LRA s.64(4)), and workplace-forum consultation on merit-increase and bonus criteria (LRA s.84(1)(h)).
18	Silent on statutory leave	Added step 4.9 and interpretation point 6: rate the period worked; never rate down for maternity, parental, sick or COIDA leave (LRA s.187(1)(e); BCEA ss.25–25C; EEA s.6).
19	Silent on skills development reporting	Added the WSP/ATR link (steps 0.10, 5.14, 6.4): PDP learning feeds the WSP; delivered training feeds the ATR; submission by 30 April each year.
20	Silent on TES workers and on harassment risk	Added step 0.15 and 2.9 (TES as employer; from v1.1, the client as sole employer of deemed employees) and P8 (performance management used as bullying, Harassment Code, GN R.1890, 2022).
21	Domain scope: career and succession treated briefly	Added job profiles, gap analysis and the gap to the next position (steps 0.4, 1.3, 5.10) to match the GBS Architecture definition of the domain, and linked succession to the Resourcing flow's path (c).

Alignment points with other GBS flows

- **Resourcing flow.** It refers to "the GBS Performance Management, Career and Succession process" for job profiles and the succession register (its steps 0.5–0.6). In this flow these are PM04 (step 0.4) and PM35 (step 5.11). Resourcing v2.0 form RS09 (succession / talent register extract, used at step 1.4 and for path (c)) is an extract of PM35; the "Succession flow (planned)" source shown for RS09 is this flow. Its probation reviews at day 30, 60 and 90 (step 5.10) and the RS40 development plan for Model 3 and succession appointees feed step 2.7 and PM20 here. Update the Resourcing cross-references to these form numbers.



- **Incapacity flow.** I06 covers the counselling meeting record but has no notice-to-attend section for the formal PIP meeting (source T2). Add one, or add a separate form. Incapacity step 2A.3 is a formal counselling meeting; this flow's R3 is the informal step before it. The two together replace source steps 2–3.
- **Operational Requirements flow.** Where performance is used as a selection criterion, use only calibrated ratings from this flow, and only if the criterion was agreed or is fair and objective.

Drafting issues in the law worth raising

- **The Code is silent on performance management outside dismissal.** Items 19–20 test a dismissal; nothing guides ratings, PIP content or the length of the improvement period. Employers rely on case law and best practice for the whole pre-dismissal record.
- **Item 19(2) is thinner than the repealed item 8.** The old Code required an investigation into the reasons for poor performance, consideration of alternatives and a right to be heard with a representative. The 2025 Code says only that the employee should have an opportunity to respond. This flow keeps the older safeguards as BP (R2, R3 and the Incapacity flow).
- **"Benefits" in s.186(2)(a).** Whether a purely discretionary bonus is a benefit, and when a rating that drives it can be challenged, is not fully settled in the case law. Scheme rules should state the nature of each payment clearly.
- **Equal application is required but undefined.** The equal-pay criteria allow performance-based differences only under an equally applied evaluation system, without saying what equal application requires. Calibration records and adverse-impact analysis are the best available evidence. The EE Regulations, 2025 (GN 6125) reg 7(1)(c) now add that the system must be consistently applied, and reg 7(2) that the differentiation must be applied proportionately and not be biased against a listed group, but they still do not define equal application.
- **POPIA s.71 has no guidance.** Neither the Information Regulator nor a court has said when human involvement is enough to take an AI-assisted rating outside "based solely" on automated processing. The safeguards in step 0.8 are prudent, not settled.
- **WSP timing.** The 30 April deadline and the April–March grant year do not match many employers' financial years, so PDP data for the WSP may come from a different performance cycle. Build the extract date into the calendar (step 5.14).

Revision history — v1.1 (19 October 2026)

Version 1.1 implements every finding of the independent legal verification and validation review of 19 October 2026 (Critical 0, Major 2, Minor 11, Improvement 12), as approved by GBS. Rows O1 to O5 are items still open. The three diagrams were checked and needed no change.



#	Finding (severity)	Where	Change made
1	Dismissal referral period ignored the final appeal decision (Major)	P6; statutory windows; employee obligations	30 days now run from dismissal or, if later, the final decision to dismiss or uphold it on appeal (s.191(1)(b)(i)), as in Incapacity v1.1.
2	TES: client is sole employer of deemed employees (Major)	Purpose (scope); 0.15; 2.9; TES interface; Correction 20	Above-threshold, short or temporary placements stay with the TES; deemed s.198A(3)(b) employees are the client's and enter this flow directly (*Assign Services*, CC 2018); s.198A(5) equal treatment includes performance pay.
3	Day counting used the Interpretation Act only (Minor)	Purpose (counting time); section 14 intro; employee obligations	CCMA Rules rule 3 cited: a period ending on a Saturday, Sunday or public holiday moves to the next working day.
4	EEA s.6(4) and s.11 overstated (Minor)	Purpose (legal status)	A pay difference is unfair discrimination only if based on a listed or arbitrary ground; onus split between s.11(1) and s.11(2).
5	EEA referral routes "verify" (Minor)	P5	Added s.10(6): CCMA arbitration below the threshold, for sexual harassment or by consent; otherwise Labour Court.
6	Probation dismissal is not a ULP (Minor)	P4	Added that a probation dismissal is a 30-day dismissal dispute (P6).
7	EE equal-pay criteria citation (Minor)	Purpose; 0.7; 5.3; Correction 12; drafting issues	Cited EE Regulations, 2025 (GN 6125) reg 7(1)(c) and 7(2) (consistently applied; proportionate; no bias).
8	King IV superseded (Minor)	0.3; Sources	King V (2025), effective for financial years from 1 January 2026.
9	Representation at PIP meetings shown as a right (Minor)	R5; rights not to obstruct	Labelled BP (as policy), consistent with Incapacity 2A.3; right kept for incapacity enquiries.
10	PIP period differed from Incapacity 2A.5 (Minor)	R5; Correction 6	Now BP 30–90 days, per Incapacity 2A.5.
11	WSP late-submission extension omitted (Minor)	Figures in force; liability register	Added reg 4(4) and the one-month extension under reg 4(8).
12	POPIA Health Information Regulations, 2026 (Minor)	0.9; 3.8; EAP interface	Cited GN 7198, GG 54268 and POPIA s.32(1)(f), (2); confidentiality-duty control added.



#	Finding (severity)	Where	Change made
13	Reasonable accommodation definition (Minor)	Purpose (disability)	EEA s.1 (definition) and s.6; Disability Code GN 1085 cited.
14	LRA s.84(1) "verify" (Improvement)	Purpose; 0.2; union interface; Correction 17	s.84(1)(h) merit and bonus criteria; s.84(1)(i) education and training.
15	*Apollo Tyres* "verify" (Improvement)	Purpose; 0.6; 5.2; P4; Correction 11	Citation completed (DA1/11, LAC, 21 February 2013) and holding stated.
16	*Noonan* citation (Improvement)	5.10	[2012] ZALAC 18 added.
17	Codes of good practice citations (Improvement)	Labels; 1.8; P8; Correction 20; Sources	Equal Pay GN 448 (2015); Disability GN 1085 (2015); Harassment GN R.1890 (2022).
18	PAIA 30 days "verify" (Improvement)	P11; statutory windows	PAIA s.56(1) confirmed; "verify" removed.
19	SETA Grant Regulations "verify" (Improvement)	0.10; 5.14; 6.4; windows; liability register	GN R.990, GG 35940, 2012, reg 4 cited.
20	*Van Wyk* parental leave (Improvement)	Purpose (statutory leave); 3.9; 4.9	Leave neutrality covers the shared 4 months and 10 days read in by the Constitutional Court (3 October 2025).
21	Code status and legislative watch (Improvement)	Purpose (legal status); 6.7	Status re-checked 19 October 2026; Labour Law Amendment Bill, 2025 tracked as DRAFT.
22	Alignment with Resourcing v2.0 (Improvement)	2.7; 5.11; Resourcing interface; alignment points	Day 30/60/90 probation reviews (RS40), Model 3 and succession appointees, RS09 as an extract of PM35.
23	EE sectoral targets in succession (Improvement)	5.9; 5.11	Pools checked against annual targets aligned to GN 6124 sectoral targets and the 3% disability target (designated employers).
24	B-BBEE Codes citation (Improvement)	6.5	Codes (2013, amended 31 May 2019), Code Series 300 or sector code.
25	POPIA s.71 rule labelled BP (Improvement)	Purpose (a human decides); 0.8; adjacent flows	Noted s.71(2)–(3) exceptions; rule adopted as BP; cross-reference to GBS POPIA and AI Compliance flows.
O1	Open: Equal Pay Code GG number	Labels; Sources	GN 448 (1 June 2015) confirmed; GG number not confirmed.
O2	Open: B-BBEE Codes GG numbers	6.5	Left as "(verify GG numbers)".

#	Finding (severity)	Where	Change made
O3	Open: *Apollo Tyres* neutral citation	Purpose; 0.6; 5.2; P4	Case number and date confirmed; ZALAC number not confirmed.
O4	Open: Disability Code item for reasonable accommodation	Purpose; 1.8	Code cited by GN number only.
O5	Open: questions for the author (V&V section 5)	Whole flow	Awaiting GBS answers on designated status, collective agreements, bonus scheme nature, TES use, AI tools and financial-year alignment.

Sources

- *End-to-End Performance Management Process*, J. Botha, 1 October 2026 (supplied for this flow).
- Code of Good Practice: Dismissal, 2025, GN 3470, GG 53294, 4 September 2025, items 2, 3, 14–21; commentary on the poor-performance and probation items and the repeal of Schedule 8 (Werksmans, 18 September 2025; Labourwise; SALLR LabourEdge article 3/2026; Vermeulen Law, 2026). The repealed Schedule 8 items 8–9 were checked for the item-number correction.
- SETA notices for the 2026/27 mandatory grant window (MQA, CATHSSETA, FP&M SETA, FASSET) and commentary (FAnews, February 2026) confirming the 30 April WSP/ATR deadline, the 20% mandatory grant and the SETA Grant Regulations (GG 35940, 3 December 2012).
- GBS Incapacity, Misconduct, Resourcing, Off-Boarding, Operational Requirements, COIDA, PDA and AARTO process flows and the GBS Process Architecture as a Service document (project files), for format, the domain definition, the BCEA threshold (R269,600.90 from 1 May 2026), the EE reporting cycle and cross-references.
- The LRA, BCEA, EEA and Regulations, Codes on Equal Pay (2015), Disability (2015) and Harassment (2022), POPIA, PAIA, the Skills Development Act, the Income Tax Act, the Prescription Act, the Interpretation Act, King V (2025) and the cases named are cited from general knowledge; verify wording, citations and any later authority before use.
- v1.1 verification (19 October 2026): Code items 14–20 (Acts Online); LRA s.84(1) (Acts Online); EEA s.6(4) and s.10 (Acts Online); EE Regulations, 2025 (GN 6125) reg 7 (Acts Online); *Assign Services v NUMSA* [2018] ZACC 22; *Apollo Tyres SA v CCMA* (DA1/11, LAC 2013, Worklaw summary); *Noonan v SSSBC* [2012] ZALAC 18; *Van Wyk v Minister of Employment and Labour* (CC, 3 October 2025; Webber Wentzel); SETA Grant Regulations (GN R.990) reg 4 (Acts Online); PAIA s.56 (Acts Online); King V (Bizcommunity, 2025); Codes on Equal

Pay (GN 448, 2015) and Harassment (GN R.1890, 2022) (LawLibrary); POPIA Health Information Regulations, 2026 (GN 7198, GG 54268); Labour Law Amendment Bill status (Cliffe Dekker Hofmeyr, 23 July 2026); GBS Incapacity flow v1.1 and Resourcing flow v2.0.

This flow is a working document for legal review, not legal advice.